Student's Full Name (Please Print) **School** **Grade Level**

2026-2027

Liberty County School District Code of Student Conduct

STUDENT ACKNOWLEDGEMENT

I HAVE RECEIVED A COPY OF the *"Code of Student Conduct"* for the Liberty County Schools, which includes the following:

- Family Education Rights & Privacy Act
- Florida Educational Equity Act
- Title IX Regulations
- Notification of Risk
- 504 Policy Statement
- Public Safety Information Act of 1997
- Pupil Rights Amendments

By signing below, I acknowledge that I have reviewed this document.

_____ _____

Student Signature **Date of Signature**

_____ _____

Parent/Guardian Signature **Date of Signature**

Return this page to your homeroom teacher.

www.lcsb.org

Liberty County School District Code of Student Conduct & Policy Guide

2026-2027

Leading Our Students to Success

Vision

To inspire a love of learning, instill social responsibility, and prepare **ALL students** for success in the global community through a systems approach of continuous improvement.

Parent/Legal Guardian:

Please read and review this document with your student. Please sign and return the front page of this document to your student's school.

www.lcsb.org

School Board Approved: **8/3/26**

Code of Student Conduct and Policy Guide
2026 - 2027
Grades PK-12

www.lcsb.org

Vision
To inspire a love of learning instill social responsibility and prepare all students for success in the global community through a system approach of continuous improvement.

Scope of Authority
Florida law requires that all students receive a Code of Student Conduct. This Code is used to govern conduct and discipline in the Liberty County Schools. Each student must obey district rules while on school grounds; while being transported to or from school at public expense; and during school-sponsored events, field trips, athletic functions, and similar activities. [SBP: 5.30] During such times, all students are subject to the immediate control and direction of teachers, staff members, or bus drivers to whom such responsibility has been assigned by the principal. Student disciplinary infractions and the interventions are divided into four levels. Each level represents progressively more serious infractions, and interventions become progressively more severe.

The Code also applies to students who commit felonies or delinquent acts which would be felonies if committed by an adult, off School Board owned property or whose off-campus conduct may have a detrimental effect on the orderly operation of a school, or jeopardize the health, safety, or welfare of students and staff members of a school. Furthermore, students may be subject to school disciplinary sanctions when they commit acts away and apart from school that can be shown to pose a threat or danger to the safety of other students, staff, School Board members, or school property, or will prevent the orderly delivery of the instructional program, or present danger to the student who committed the infraction.

The Liberty County School Board approved the Code of Student Conduct and Policy Guide to help students, parents and school personnel understand the guidelines for maintaining a safe and orderly learning environment. The Code of Student Conduct and Policy Guide was developed by district staff, school-based administrators, teachers and parents and is reviewed on a yearly basis. This Code applies to all Liberty County Public School students in pre-kindergarten through grade 12, including high school students attending either the Liberty Adult School, Liberty Learning Center or a college dual-enrollment program.

Students should be advised that violations of the Code of Student Conduct and Policy Guide may also be violations of Florida law. Thus, students may be subject to school facilitated discipline as well as discipline imposed by local law enforcement authorities. School Resource Deputies/Officers and other law enforcement authorities have the power to conduct investigations independent of those conducted by school personnel for the same incident. Furthermore, the sanctions imposed by the school district for misconduct are separate and distinct from the consequences that may be imposed following the arrest and prosecution of a student for a violation of law originating from the same incident. Please keep in mind that failure of one entity to act does not prevent the other from taking appropriate actions consistent with this Code of Student Conduct or with Florida law.

Code of Student Conduct & Policy Guide Revision Committee

Kyle Peddie, Superintendent
Jeff Sewell, Assistant Superintendent
Mandie Fowler, Director of Instruction
Stephanie Davis, Director of Special Education
Eric Willis, Principal, Liberty County High School
Tim Davis, Assistant Principal, Liberty County High School
Rebecca Brown, Principal, W.R. Tolar K-8 School
Jackson Summers, Assistant Principal, W.R. Tolar K-8 School
Danielle Summers, Principal, Hosford Elementary & Junior High School
Rob Wheetley, Assistant Principal, Hosford Elementary & Junior High School
District Advisory Council

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Key:

- SBP (School Board Policy) – Policies set from the School Board for Liberty County Employees to follow. These are located on the Liberty County Schools Web Site. Any School Board Policy noted in the Code can be seen in its entirety on the Liberty County Schools' Web Site.
- Florida Statutes – Florida School Laws are noted throughout the Code of Student Conduct & Policy Guide with the Florida Statute number. These are also located on the Internet.

Staying Informed about Liberty County Schools

Please stay in touch with the School Board of Liberty County, Florida, schools and classrooms, as your continued support is essential to the success of Liberty County Schools.

The School District is comprised of an excellent group of educators, administrators, support staff and School Board Members dedicated to providing a quality education for students. The District's website is an important component of its comprehensive communication plan through which it conveys to the community a view of the District's commitment to providing a high-quality education.

Here is a list of mediums that the District utilizes to put forth information that helps to improve internal and external communication systems with the specific goal of creating open, two-way communication between the School Board of Liberty County, Florida, administration, staff, students, parents, and the community.

Web

The District's website, *www.lcsb.org*, is updated frequently to provide parents, students and the community with important information about the School Board of Liberty County, Florida. Direct links to school websites arefound on the district website.

ParentSquare

ParentSquare is used to communicate real-time information to parents/guardians.

The School Board of Liberty County, Florida, also actively partners with its local media outlets. In times of an emergency, many media outlets will help the School District quickly deliver information to the community.

SECTION I: RIGHTS AND RESPONSIBILITIES

STUDENT RIGHTS

Students attending the Liberty County Public Schools have the right to a free and appropriate education, which includes the right to equal educational opportunities without regard to race, national origin, sex, disability, or marital status. Students are also vested with other fundamental rights. Among these is the right to:

1. be informed of the rules of the Code of Conduct;
2. a safe and orderly environment in which to learn;
3. know about and use school guidance services;
4. be treated with dignity and respect;
5. reasonable and fair treatment;
6. be protected by laws prohibiting the release of personally identifiable information, other than directory information, to any unauthorized party without the consent of parents/guardians, or students 18 years of age or older
7. free transportation as allowable by law; and
8. be notified of failure or the potential for failure as outlined in the progress-reporting schedule.

DAILY CONDUCT CODE - [§1003.31(4) (a-g), Florida Statutes]

By enrolling in a School Board of Liberty County, Florida, school, each student agrees to conduct himself/herself according to the Statute's Daily Conduct Code which requires that students:

1. be respectful and obedient at all times;
2. not hurt another person with my words or my acts;
3. tell the truth, because it is wrong to tell a lie;
4. not steal, because it is wrong to take someone else's property;
5. not cheat or plagiarize the work of others;
6. respect my body, and not take drugs;
7. show strength and courage, and not do something wrong, just because others are doing it; and
8. pledge to be nonviolent and to respect my teachers and fellow classmates.

FAMILY RESPONSIBILITIES

By enrolling a child in a School Board of Liberty County, Florida, school, each parent/guardian agrees to comply with the essential parental responsibilities including but not limited to:

1. reviewing the contents of the Code of Student Conduct and Policy Guide with their child;
2. ensuring their child lives in the assigned school zone compiling with open enrollment policy:
3. ensuring the daily attendance of their child and promptly report and explain any absences or tardiness from school;
4. providing their child with the resources needed to complete class work;
5. assisting their child in being healthy, neat, and clean;
6. bringing to the attention of the school authorities any problem or condition which affects their child or other children of the school;
7. ensuring their child does not bring inappropriate (Section III) or contraband (Section IV, Level II) items to school;
8. discussing report card and work assignments with their child;
9. ensuring that the school has up-to-date home, work, and emergency telephone numbers;
10. ensuring that current emergency health care information regarding their child is on file with the school; and
11. communicating with the school (i.e.: talk to child's teacher, return requested forms, etc.).

RESPONSIBILITY MAKES A DIFFERENCE
Becoming a responsible adult begins with becoming a responsible student!

Students have the responsibility to:

1. adhere to the guidelines set forth in the school handbook and this code;
2. attend all classes daily and be punctual;
3. come to class with all necessary materials and be prepared to learn;
4. take advantage of learning opportunities;
5. use guidance services for educational and personal improvement;
6. treat other people and property with respect;
7. report hazardous or dangerous situations to an adult in authority;
8. immediately report threats to do harm to an adult in authority;
9. immediately report illegal activities to appropriate authorities;
10. refrain from bringing inappropriate or contraband items to school;
11. abide by all bus safety rules and procedures;
12. follow the classroom rules and to complete all classroom assignments, homework, and projects/reports as outlined by their current classroom teacher;
13. refrain from profane or inflammatory statements;
14. conduct themselves in a safe and responsible manner;
15. present a clean and neat appearance;
16. take responsibility for his/her own work and actions; and share with their parents/guardians grades and progress reports received relative to their progress in each class.

Note: Students who report any of the above listed activities/information to the appropriate authorities may have their names held in confidence and the School District agrees not to release the student's name to any other student.

SECTION II: PUBLIC NOTICE

ACCESS TO STUDENTS & STUDENT RECORDS BY PARENTS

When parents are divorced, or separated, both parents have full rights to participate in the child's school activities and know what is happening at school unless there is a court document limiting that access. A non-residential parent may have access to student records and information unless a court order prohibits such access. If a court has issued such an order, then the student's parent is responsible for providing the principal with a certified copy of the order. Additionally, the school will not resolve parental disputes regarding a student and/or student record access. Normal school procedures for parent pick-up, eating with a student at school, and attendance at other school activities is permitted by both parents unless there is a court document that prohibits contact or severs parental rights. **It is the parent's responsibility to supply the school with any documents that delineate custody issues.** Schools do not have facilities nor is it appropriate to accommodate parent domestic visitations. If parents approach schools for these visitations, they will be requested to make arrangements for out-of-school school visitations after school hours. [§61.13 (2) (b) 3, Florida Statutes]

CIVILITY POLICY

Employees of the Liberty County Schools will treat parents and other members of the public with respect and expect the same in return. The district must keep schools and administrative offices free from disruptions and prevent unauthorized persons from entering school/district grounds. Accordingly, this policy promotes civility, mutual respect, and orderly conduct among district employees, parents, and the public.

CRISIS PROTOCOL

Providing a safe and secure environment for our students to learn is a top priority of the School Board of Liberty County, Florida. Measures have been taken to ensure our staff and students are prepared in the event a crisis occurs in one of our schools. A comprehensive Crisis Management Plan has been created to guide our staff through a wide variety of situations. Fire drills, tornado drills, and lockdowns are practiced at each site to ensure that routines and safety proceduresare well established and familiar to all.

Parents – Cooperate with school and district authorities during a lockdown crisis:

- Cooperate with school and/or district directives.
- Consult local media for regular updates about the incident. Listen for information updates on local radio and television stations. You may be directed to an off-campus parent staging area for the latest information regarding a campus crisis.
- DO NOT call the school because phone lines will be needed for emergency communication.
- DO NOT call your child's cell phone for cell towers to be clear for emergency use.
- DO NOT go to the school if a lockdown situation should occur. Roads are closed, doors are locked, and campuses are off-limits to anyone other than authorized personnel.

Pursuant to Florida Statute 120.54, in the event of an emergency, the Superintendent or the School Board can enact additional rules governing student conduct which shall be enforced as included in this Code of Student Conduct.

DIRECTORY INFORMATION

The District shall make available, upon request, certain information known as "directory information" without prior permission of the parents or the eligible student. Directory information means information contained in an education record of a student that would not generally be considered harmful or an invasion of privacy if disclosed. The Board designates as student "directory information": a student's name; photograph; address; telephone number, if it is a listed number; e-mail address; date and place of birth; participation in officially-recognized activities and sports; height and weight, if a member of an athletic team; dates of attendance; grade level; enrollment status; date of graduation or program completion; awards received; and most recent educational agency or institution attended.

An annual written notice shall be given to inform parents, guardians, and eligible students of their rights of access, waiver of access, challenge and hearing, privacy, categories of personally identifiable student information designated as directory information data, and the location and availability of the District's policy on education records of students. Alternate methods of notice shall be made for parents, guardians, or eligible students unable to comprehend a written notice in English. Parents or eligible students may, by providing a written statement to the principal within two (2) weeks of the first day of the school year or entry into the school system request that all specific portions of directory information for that specific student not be released.

Directory information shall not be provided to any organization for profit-making purposes, unless the request is approved, in a nondiscriminatory manner, by the Superintendent.

In accordance with Federal law, the District shall release the names and addresses of students in grades ten through twelve (10-12) to a recruiting officer for any branch of the United States Armed Forces or an institution of higher education who requests such information. Such data shall not be released if the eligible student or student's parents submit a written request not to release such information. The recruiting officer is to sign a form indicating that "any information received by the recruiting officer shall be used solely for the purpose of informing students about military service and shall not be released to any person other than individuals within the recruiting services of the Armed Forces". The Superintendent is authorized to charge mailing fees for providing this information to a recruiting officer.

Whenever parental consent is required for the inspection and/or release of a student's health or educational records or for the release of "directory information", either parent may provide such consent unless agreed to otherwise in writing by both parents or specifically stated by court order. If the student is under the guardianship of an institution, the Superintendent shall appoint a person who has no conflicting interest to provide such written consent.

The District may disclose "directory information" on former students without student or parental consent. SBP 8330

FAMILY EDUCATIONAL RIGHTS & PRIVACY ACT

The Family Educational Rights and Privacy Act (FERPA) affords parents/guardians and students over 18 years of age ("eligible students") certain rights with respect to the students' educational records. They are:

1. The right to inspect and review the student's education records within 30 days of the day the District receives a request for access. Parents/guardians or eligible students should submit to the school principal (or appropriate school official) a written request that identifies the record(s) they wish to inspect. The principal will make arrangements for access and notify the parent/guardian or eligible student of the time and place where the records may be inspected**.** If copies of these records are requested, the first five pages will be provided at no cost. For requests in addition to five pages, an amount of 15 cents per page will be charged.
2. The right to request the amendment of the student's education records that the parent/guardian or eligible student believes are inaccurate or misleading. Parents/guardians or eligible students may ask the School Board of Liberty County, Florida, to amend a record that they believe is inaccurate, misleading, or in violation of the student's privacy rights. When making such a request, a written statement to the school principal should clearly identify the part of the record they want changed and specify why it is inaccurate or misleading. If the District decides not to amend the record as requested by the parent/guardian or eligible student, the District will notify the parent/guardian or eligible student of the decision and advise them of their right to a hearing regarding the request for amendment. Additional information regarding the hearing procedures will be provided to the parent/guardian or eligible student when notifiedof the right to a hearing.
3. The right to consent to disclosures of personally identifiable information contained in the student's education records, except to the extent that the Family Educational Rights and Privacy Act authorizes disclosure without consent.
   The one exception, which permits disclosure without consent, is disclosure to school officials with a legitimate educational interest. A school official is a person employed by the District as administrator, supervisor, instructor, or support staff member (including health or medical staff and law enforcement unit personnel); a person serving on the School Board; a person or company with whom the District has contracted to perform a special task (such as an attorney, auditor, medical consultant, or therapist); or a parent/guardian or student servingon an official committee, such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks. A school official has a legitimate educational interest if the official needs to reviewan education record in order to fulfill his or her professional responsibility.
4. Upon request, the District will release student's records to "an agency caseworker or other representative of a state or local child welfare agency, or tribal organization" when the agency or organization "is legally responsible" for the "care and protection of the student." This release is authorized provided that the education records or the personally identifiable information contained in such records of the student will not be disclosed except to an individual or entity addressing the student's education needs. Reference memo on FERPA amendments.
5. Upon request, the District discloses educational records, including record of disciplinary actions, without consent to officials of another school district in which the student intends to enroll.
6. When requesting basic information from students and parents/guardians, a request will be made for students' social security numbers under section §1008.386, Florida Statutes. In any case, disclosure of the social security numbers is voluntary and will be used only as a student identification number in the Information Technology (IT) system maintained by the district. SBP 8330
7. The right to file a complaint with the U.S. Department of Education concerning alleged failures by the District to comply with the requirements of FERPA. The name and address of the Office that administers FERPA is:

   Family Policy Compliance Office
   U.S. Department of Education
   600 Independence Avenue SW
   Washington D.C. 20202-4605

NOTIFICATION OF COMPLIANCE

The School Board of Liberty County, Florida, adheres to a policy [SBP: 2260.1] **of non-discrimination in educational programs/activities and employment and strives to provide equal opportunities for all as required by:**

Liberty County School District does not discriminate in admission or access to, or treatment or employment in, its programs and activities on the basis of race, color, religion, age, sex, national origin, marital status, disability, genetic information for applicants and employees, or any other reason prohibited by Federal and State law regarding non-discrimination. See 34.C.F.R. 100.6(d); 34 C.F. R. 106.9; 34 C.F.R. 110.25. In addition, the School Board provides equal access to the Boy Scouts and other designated youth groups. This holds true for all students who are interested in participating in educational programs and/or extracurricular school activities. See 34 C.F.R. 108.9. Disabled individuals needing reasonable accommodations to participate in and enjoy the benefits of services, programs, and activities of the School Board are required in advance to notify the administrator at the school/center at which the event or service is offered to request reasonable accommodation. The lack of English language skills will not be a barrier to any opportunity or even associated with Liberty County School District Schools. The designated Equity Coordinator, Title IX and Section 504 Compliance Coordinator as required by 34 C.F.R. 100.6(d) is Jeff Sewell, Assistant Superintendent of Schools, 11051 NW State Road 20, Bristol, Fl 32321; jeff.sewell@lcsb.org;

Americans with Disabilities Act Title II – prohibits discrimination on the basis of disability in state and local government programs/services

Child Find – the district has an obligation to identify, locate, and evaluate all children with disabilities

Civil Rights Act of 1964 TITLE VII – prohibits discrimination on the basis of race, color, religion, or national origin

Florida Civil Rights Act of 1992 – secures for all individuals within the state, freedom from discrimination because of sex, national origin, age, disability, or marital status

Florida Education Equity Act – the School Board of Liberty County, Florida, prohibits discrimination on the basis of race, disability or marital status, sex, or national origin against students or employees in any educational program or activity, or in any employment conditions or practices – The supervisor responsible for compliance may be contacted at (850) 643-2275.

Section 504 of the Rehabilitation Act of 1973 – prohibits discrimination against the disabled. It is the intent of the district to identify, evaluate, and provide appropriate educational accommodations to these students. Students may be disabled under this policy even though they do not require services pursuant to the Individuals with Disabilities Education Act (IDEA) – Students and parents/guardians have a right to due process under Section 504. A copy of parent/guardian rights afforded by Section 504 of the Rehabilitation Act of 1973 is available at all district schools. The Director of Exceptional Student Education (ESE) is the coordinator of Section 504 activities and may be contacted at (850) 643-2275.

Title IX of Education Amendments of 1972 – states: "No person in the United States shall, on the basis of sex be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving federal financial assistance" – This statement of non-discrimination extends to School Board employment practices and to admission to school programs. A "Title IX Complaint" is a claim by a person that he or she has been discriminated against on the basis of sex in the programs or activities operated by the School Board of Liberty County, Florida. A person having Title IX complaint should direct his/her concern to the Superintendent of Schools who will either investigate the complaint or refer it to appropriate personnel. If the complaint is not resolved, the complaint and a complete copy of the findings of the investigation will be sent to the Office of the Assistant Superintendent. SBP 2260.1

Address any Title IX Complaint to:
Assistant Superintendent of Schools
School Board of Liberty County
P.O. Box 429
Bristol, FL 32321

NOTIFICATION OF RISK

Be aware that playing or practicing to play/participate in any sport can be dangerous in nature and involve MANY RISKS OF INJURY. It is understood that the dangers and risks of playing or practicing to play/participate in interscholastic sports may result in complete or partial paralysis; brain damage; serious injury to virtually all bones, joints, ligaments, muscles, tendons, and other aspects of the muscular/skeletal system; serious injury to virtually all internal organs; serious injury or impairment to other aspects of the body, and general health and well-being. Understand that the dangers and risks of playing or practicing to play/participate in interscholastic sports may result not only in serious injury, but in a serious impairment of future ability to earn a living, to engage in other business, social and recreational activities, and generally to enjoy life. Because of the dangers of participating in interscholastic sports, it is important to follow and obey coaches' instructions regarding playing techniques, training and team rules.

All employees, agents, representatives, coaches, and volunteers will be held harmless from any and all liability, actions, causes of actions, debts, claims, or demands of any kind and nature which may arise out of or in connection with participation in any activities related to the high/middle school interscholastic sports team; including, but not limited to, trying out, practicing or participating in that sport. The terms hereof shall serve as a release and assumption of risk for heirs, estates, executors, administrators, assignees, and all family members.

INSURANCE (Student Accident)

The School Board of Liberty County, Florida provides student accident insurance to all students. This insurance provides valuable coverage in the event that your child is injured in an accident during the school day or as a result of extracurricular activities. This coverage is secondary to any other health insurance coverage that is carried on the child. If you have health insurance, this can help cover deductibles and co-pays to limit out of pocket expenses. In the event of an accident, school personnel are required to document the accident and keep this on file at the school site. If medical attention is needed, the expense must be paid by the parents and filed under the primary health insurance coverage first. If the child is uninsured, the parents can submit the accident report from the school along with the student accident claim form in order to request reimbursement. There is a $100.00 deductible that must be paid by the parent or guardian before this coverage will pay. If you have questions regarding this coverage, please contact your child's school. If further assistance is needed regarding claims or reimbursements, please contact Katy Gunn, Director of Finance at 643-2275, ext. 11225.

PROTECTION OF PUPIL RIGHTS AMENDMENTS

Local educational agencies receiving funds from the U.S. Department of Education are required by federal law to comply with requirements for the collection and reporting of certain information by means of student surveys, as well as requirements to protect student privacy. The information that must be reported relates to student attitudes and behaviors on topics such as school safety, substance use and the prevalence of risky attitudes or behaviors, particularly with respect to alcohol and drug abuse. In addition, these surveys also collect information on general health practices and human sexuality. Such information is collected by survey anonymously on a sampling basis, and no personally identifiable information is obtained from or reported on any individual student. The district cooperates with other agencies such as the Florida Department of Health in conducting these surveys.

It is the policy of the School Board of Liberty County, Florida, to notify parents/guardians of upcoming surveys that reveal information concerning one or more of the following items:

- Political affiliations or beliefs of the student or the student's parent/guardian
- Mental and psychological problems of the student or the student's family
- Sexual behavior or attitudes
- Illegal, anti-social, self-incriminating, or demeaning behavior
- Critical appraisals of other individuals with whom respondents have close family relationships
- Legally recognized privileged or analogous relationships, such as those of lawyers, physicians, and ministers
- Religious practices, affiliations, or beliefs of the student or student's parent/guardian
- Income (other than that required by law to determine eligibility for participation in a program or for receiving financial assistance under such program)

Participation Voluntary – No student shall be required to participate in such a survey if the student or the student's parent/guardian, if the student is less than 18 years of age, objects to participation. Prior written parental consent will be obtained before a minor student takes a survey funded by U.S. Department of Education that includes any of the above topics. On all other surveys, parents/guardians will be given the opportunity to opt their child out of participation. Notification to parents/guardians will occur prior to students being given surveys.

Right to Inspect – A student or the student's parent/guardian, if the student is less than 18 years of age, has the right to inspect any such survey instrument before the survey is administered or distributed to students if a request is made within a reasonable period of time. Parents/guardians further have the right to inspect or review:

- arrangements that will be made to protect student privacy;
- instruments used to collect personal information from students for any of the above marketing, sales, or other distribution purposes; and
- instructional material used as part of the educational curriculum.

Notification of Parents/Guardians – Parents/guardians will be notified of this policy annually, at the beginning of the school year, and within a reasonable period of time if any substantive change is made to this policy. Such notice shall include the specific or approximate dates during the school year when any such survey will be administered.

PUBLIC SAFETY INFORMATION ACT 1997 – SEX OFFENDER/ SEXUAL PREDATOR LAWS
Information is available at each school. Contact the Superintendent's Office.

STUDENT GRIEVANCE PROCEDURES
The School Board of Liberty County, Florida, will promptly investigate alleged incidents of harassment or discrimination and appropriate, corrective action will be taken. Any student who alleges harassment or discrimination by another student or School Board employee shall report the harassment to the assistant superintendent, building principal, assistant principal(s), guidance counselors or teachers. Filing of a complaint or otherwise reporting harassment in good faith, will not affect the student's status, extracurricular activities, grade or any other assignments. However, willfully reporting a false claim of harassment or discrimination in bad faith is illegal and will subject the reporter of the false claim to disciplinary action.

The harassment or discrimination complaint shall be in writing, state the act or acts, state the date(s), state the names of witnesses, and shall be signed by the complainant. The right to confidentiality, both of the complainant and of the alleged harasser, will be respected, consistent with the Board's legal obligations and with the necessity to investigate allegations of misconduct and to take corrective action when the conduct has occurred. Retaliation against any student for alleging harassment or discrimination is strictly forbidden. [SBP: 5710]

STUDENT RECORDS AND REPORTS – RIGHTS OF PRIVACY – NOTIFICATION
In accordance with §1002.22, Florida Statutes, students and their parents/guardians shall have rights of access, rights of challenge, and rights of privacy with respect to student records and reports. Every student shall have a right to privacy with respect to the educational records kept on him or her. Personally identifiable information contained in such records and reports is confidential. These records and reports cannot be released without the written consent of the student's parent/guardian, or of the student himself or herself if he or she is 18 years of age or older, unless the purposes for the release of such information is consistent with §1002.22, Florida Statutes. Such a release of information without consent can be for any reason consistent with that in §1002.22 Florida Statutes., including, but not limited to, purposes consistent with interlocal agreements with other agencies.

SUBPOENAS FOR STUDENT RECORDS
School officials must comply with subpoenas from a court of competent jurisdiction for the production of student records. The production of these records must be accomplished in a lawful and timely manner. If a student (18 years old or older) or the parents/guardians of a minor student object to the release of subpoenaed records, an objection to a subpoena for non-party production must be filed or a protective order must be obtained from a court of competent jurisdiction. After school receipt of proper notification, the subpoenaed records will be produced as demanded on the 10th working day following the service of the subpoena if an injunction is not granted.

SUPERVISION OF STUDENTS BEFORE AND AFTER SCHOOL AND SCHOOL ACTIVITIES

The School Board of Liberty County, Florida, is responsible for the supervision of students on school grounds from 7:20 a.m. -3:35 p.m. (Hosford), 7:30 a.m.- 3:20 p.m. (WR Tolar), 7:30 a.m.– 3:25 p.m. (LCHS) on a regular school day. Any extracurricular scheduled event will be supervised thirty (30) minutes before and after the event. Please refer to your school's beginning and ending hours and arrange for supervision of your child accordingly. Parents should not rely on school supervision outside the time limits of such policy (please note that proper authorities may be called). [1003.31, FS]

SECTION III: POLICIES GOVERNING STUDENT BEHAVIOR

ACADEMIC ELIGIBILITY REQUIREMENTS FOR PARTICIPATION IN EXTRACURRICULAR ACTIVITIES

Liberty County High School

For eligibility purposes, a grading period is defined as one semester. A semester is defined as one half of a school year (approximately 18 school weeks or 90 school days). This definition is applicable to all schools regardless of the type of scheduling format (e.g. block, traditional, etc.) utilized. A student must have a cumulative high school grade point average of 2.0 or above on a 4.0 unweighted scale, or its equivalent, in all courses taken that are required by Florida Statute, at the conclusion of each semester to be eligible during the following semester for extracurricular activities.

1. A student shall be eligible during the first semester of his/her ninth-grade year provided that it is the student's first entry into ninth grade and he/she was regularly promoted from the eighth grade the immediate preceding year.
2. A student who is ineligible during the second semester of his/her ninth-grade year or during the first semester of his/her 10th grade year because the student's cumulative high school grade point average was below a 2.0 at the conclusion of the previous semester and continues to be below a 2.0 at the conclusion of the semester of ineligibility may regain his/her eligibility for the following semester provided:
   a. the student signs an academic performance contract with his/her school at the beginning of the semester in which he/she is ineligible that states, at a minimum, that the student will attend summer school, or its graded equivalent,
   – AND
   b. earns a grade point average of 2.0 or above on a 4.0 unweighted scale, or its equivalent, in all courses taken during the semester of ineligibility.
3. Once a student enters the 11th grade, and thereafter, he/she must have a cumulative high school grade point average of 2.0 or above on a 4.0 unweighted scale, or its equivalent, in all courses taken that are required by Florida Statute, at the conclusion of each semester to be eligible during the following semester.
4. All courses taken for high school credit by a student, including those taken prior to his/her ninth-grade year, shall be included in the computation of the student's cumulative high school grade point average.
5. A student not currently suspended from interscholastic or intrascholastic extracurricular activities, or suspended or expelled from school, is eligible to participate.
6. Include other eligibility standard and related student disciplinary actions regarding student participation.

For this section, the term "eligible to participate" includes, but not limited to, a student participating in tryouts, off-season conditioning, summer workouts, preseason conditioning, in-season conditioning, summer workouts, preseason conditioning, in-season practice, or contests.

A student who transfers to a school during the school year may seek to immediately join an existing team if the roster for the extracurricular activity has not reached the activities identified maximum size and if the coach for the activity determines that the student has the requisite skill and ability to participate. The FHSAA and school district may not declare a student ineligible because the student did not have the opportunity to comply with qualifying requirements. The Liberty County School board will not delay the immediate eligibility of a student to participate in interscholastic and intrascholastic activities. The following will apply; a student may not participate in a sport if the student participated in that same sport at another school during that school year unless the student meets one of the following criteria: A). Dependent children of active-duty military personnel whose move resulted from military orders. B). Children who have been relocated due to a foster care placement in a different school zone. C). Children who move due to a court-ordered change in custody due to separation or divorce, or the serious illness or death of a custodial parent. D). Good cause as determined by district policy.

Liberty County High School shall be members of the Florida High School Activities Association and shall be governed by the bylaws of that organization and shall also follow the requirements for all extracurricular activities as prescribed by Florida law. For further details, refer to the FHSAA Handbook and the Florida Statute. [§1003.43(1) and 1006.15, Florida Statutes] Please refer to School Handbooks and Athletic policies for students.

W. R. Tolar K-8 and Hosford

Students must meet academic requirements set by your school. Any student who wishes to participate in extracurricular activities for the fall semester must have an overall grade point average (GPA) of 2.0 or higher in core classes for the last nine weeks grading period of the preceding school year to be eligible. Eligibility for any other sports will be based on the preceding nine weeks' GPA.

ATHLETIC ACTIVITIES while EXPELLED/SUSPENED

No student, while expelled, suspended (out-of-school), facing criminal charges or criminal convictions will be allowed to participate in any athletic activity. Under these circumstances, students will not be allowed to attend unless otherwise noted in the due process procedures.

ATTENDANCE RULES

The expectation of the School Board of Liberty County, FL is that all students be in attendance each day of the school year.

Parents/guardians are responsible for the attendance of their children within the compulsory school age (18 years of age) unless the child files a formal declaration of intent to terminate school enrollment with the district School Board at age 16. The declaration must acknowledge that terminating school enrollment is likely to reduce the student's earning potential and must be signed by the student and the student's parent/guardian. Parents/guardians who refuse or fail to have a child in school commit a misdemeanor, punishable as provided by law. [§1003.21(1)(c), Florida Statutes] Absence is defined as nonattendance of a student at school or in an approved educational activity/field trip or program on days school is in session. A student who is not physically present at school or not participating in an approved school activity shall be counted absent and shall not be recorded as in attendance on that day. The law allows absences for reasons listed below; under these circumstances school policy regards these absences as excused. A student with an excused absence is not subject to any disciplinary or academic penalties. Absences/tardiness shall be excused only for the following reasons:

Illness and/or medical care
Death in the family
Legal reasons
Approved religious holidays (with parent note denoted holiday being observed)
Financial and/or other insurmountable circumstances
Curriculum related field trips and/or functions of the school approved by administration

REPORTING AN ABSENCE

A written parent note and/or doctors note, explaining why the student missed school, is required upon the students' return to school and must be submitted to the front office within **five days** of the student absence in order to receive an excused absence. If a written note is not received in this timely manner (five school days), the absence will remain unexcused. The school will accept a parent note for an excused absence for up to **three days** in a quarter unless there are extenuating circumstances, subject to administrative review.

UNEXCUSED ABSENCES

An unexcused absence takes place any time a child is out of school for reasons not recognized in the law. In these cases, the child may be subject to academic penalties. Unexcused absenteeism sufficient enough to jeopardize academic progress at the school level is defined as a student being absent without an acceptable reason **five (5)** times in a calendar month or ten **(10) times** in a 90-calendar-day period. Determination of whether an absence is excused or unexcused is the responsibility of the local school principal or designee.

TARDIES

A. Any student not in the classroom when the tardy bell rings and up to 10 minutes late is considered tardy. Students who arrive after the tardy bell must report to the front office to sign in and receive an admit slip.
B. Any student entering the classroom after 10 minutes will be considered skipping unless he/she has an admit slip from the front office.
C. If a student skips class, the teacher will send a referral to the office.
D. K- 8 Schools – The first two will be a warning. Whereas, the 3rd will result in a detention with parent contact. The

4th and subsequent tardies will result in a referral and detention. The number of tardies resets each quarter.

E. (9-12) After lunch, tardies must check in through the front office. All tardies will result in lunch detention the following day.

TRUANCY

A truant is one who is not in attendance, with or without approval of the parent or other person having charge of the student, and whose absence has not been excused. Based on F.S. 1003.26, if a student has had at least **five (5) unexcusedabsences**, or absences for which the reasons are unknown, within a calendar month or ten (**10) unexcused absences**, orabsences for which the reasons are unknown, within a ninety (90) calendar-day period, the student's primary teacher shall report to the school principal or his or her designee that the student may be exhibiting a pattern of nonattendance.The principal shall, unless there is clear evidence that the absences are not a pattern of nonattendance, refer the case tothe school's child study team to determine if early patterns of truancy are developing. Based on F.S. 1003.26, a habitualtruant is a student who has **fifteen (15) unexcused** absences within ninety (90) calendar days with or without the knowledge or consent of the student's parent or legal guardian. If a child subject to compulsory school attendance will not comply with attempts to enforce school attendance, the parent, the guardian, the Superintendent or his/her designeeshall refer the case to the district staff. If the child has had more than fifteen (**15) unexcused absences** in a ninety (90)calendar day period, the Superintendent or his/her designee may file a truancy petition pursuant to the procedures in F.S.984.151. The superintendent must provide the names and identifying information of these students to the Department of Highway Safety and Motor Vehicles (DHSMV). DHSMV may not issue a drivers' license or learners permit or may suspend the driving privileges of any reported student until the student has satisfied regular school attendance requirements as outlined in Section 322.091, Florida Statutes.

FORMS OF AGGRESSION

The School Board of Liberty County, Florida, is committed to providing a safe, positive, productive, and nurturing educational environment for all of its students. The Board encourages the promotion of positive interpersonal relations between members of the school community. Aggressive behavior, bullying, harassment, and similar acts toward a student, whether by other students, staff, or third parties is strictly prohibited and will not be tolerated. This prohibition includes but is not limited to physical (hitting, kicking, spitting, pushing, pulling, taking and/or damaging personal belongings or extorting money, blocking or impeding student movement, unwelcome physical contact), verbal (oral or written) (taunting, malicious teasing, insulting, name calling, sexual, religious, or racial harassment, making threats), electronically transmitted (cyber or high-tech) (posting slurs or rumors or other disparaging remarks about a student on a web site or on a web blog, sending e-mail or instant messages that are mean or threatening, or so numerous as to drive up the victim's cell phone bill; using a camera phone to take and send embarrassing photographs of students; posting misleading or fake photographs of students on web sites), and/or psychological abuse (spreading rumors, manipulating social relationships, coercion, or engaging in social exclusion/shunning, extortion, or intimidation, dehumanizing gestures or public humiliation). The Board will not tolerate any gestures, comments, threats, or actions, which cause or threaten to cause bodily harm or personal degradation. This policy applies to all activities in the District, including activities on school property or while enroute to or from school-sponsored activities and those occurring off school property if the student or employee is at any school-sponsored, school-approved or school-related activity or function, such as field trips or athletic events where students are under the school's control, or where an employee is engaged in school business. This policy also applies to activities that take place off-campus if the activities cause emotional distress to an individual that substantially disrupts or interferes with the operation of a school or an individual student's ability to receive an education.

Aggressive behavior is defined as inappropriate conduct, whether a single isolated incident or repeated incidents that are serious enough to negatively impact a student's educational physical, or emotional well-being. It includes, but is not limited to, behaviors such as stalking, cyberbullying, intimidating, menacing, coercion, name-calling, teasing, taunting, making threats, and hazing. **Bullying** is defined as willfully and repeatedly exercising power or control over another by systematically and chronically inflicting physical hurt or psychological distress on one or more students. **Relational aggression** is behavior that is intended to harm someone by damaging or manipulating his or her relationships with others. Relational aggression can include physical, verbal (malicious gossip, putdowns, insults, spreading rumors, lies, telling secrets, name calling and threats to withdraw friendships), or covert (body language, eye rolling, social exclusion, ignoring) aggression. **Cyberstalking** as defined in 784.048(1)(d), Florida Statutes, means to engage in a course of conduct to communicate, or to cause to be communicated, words, images, or language by or through the use of electronic mail or electronic communication, directed at a specific person, causing substantial emotional distress to the person and serving no legitimate purpose. **Cyberbullying** is the use of information and communication technologies such as e-mail, cell phone, pager, text messages, instant messages (IM), personal web sites, and online personal pooling web sites, whether on or off

school campus, to support deliberate, repeated, and hostile behavior by an individual or group, that is intended to threaten or harm others, or which causes emotional distress to an individual to substantially disrupt or interfere with the operation of a school or an individual student's ability to receive an education. See School Board Policy 5517 for the complete policy. [§1006.147, Florida Statute]

BUS CONDUCT RULES – Refer to Handbook

The bus is an extension of the school campus. Therefore, students will adhere to all conduct rules, including those addressing medication, while riding a School Board of Liberty County, Florida, school bus. Only a student who is regularly enrolled as a transported student and whose name appears on the bus driver's enrollment card for that bus, shall be permitted to ride such a bus while it is being operated on a regular school bus route except upon the written request of the parent(s) or legal guardian of a student and with the written approval of the principal/designee.

Section 1006.10 (1-7), Florida Statutes gives school bus drivers the authority to monitor and control the behavior of students any time they are being transported to and from school or school functions at public expense.

Students being transported on a school bus must comply with the following rules. [SBP:5610.04**]**

1. Get on/off at their regularly appointed bus stop unless written parent/guardian permission is provided to the school administrator early in the day to allow time for verification.
2. Occupy the seat assigned by the driver and refrain from moving around while the bus is in motion. Seat belts must be correctly fastened upon taking assigned seat and worn at all times if the bus is designed with seat belts.
3. Wait until the bus has come to a complete stop before entering or exiting the front door of the bus. Students shall form a line in order to ensure safety in getting on or off the bus.
4. Be at the bus stop at least five minutes before bus arrival but not more than fifteen minutes before arrival. Observe proper rules of conduct while waiting for the bus. Students shall stay at least five feet off the road and off private property.
5. If it is necessary for a student to cross a road to board a bus, the student should wait until the bus arrives and the driver deploys the stop arm and flashing red lights. The student should make visual contact with the driver, watching for the Department of Education's (DOE) adopted crossing signal. The student should then make a right and left check for traffic and cross twelve (12) feet in front of the bus.
6. If it is necessary for a student to cross a road after unloading from a bus, the student should stand at the side of the bus in sight and hearing of the driver. The student should make visual contact with the driver, watching for the DOE's adopted crossing signal. The student should then make a right and left check for traffic and cross twelve (12) feet in front of the bus.
7. Obey the driver and monitor at all times and follow the standards of conduct while riding the school bus. Report promptly to the principal when instructed to do so by the driver. Bus infractions may result in an out-of-school suspension.
8. Keep all body parts and belongings inside the bus windows.
9. Keep from littering, throwing, or propelling objects inside the bus.
10. Keep from throwing or propelling items outside the bus windows. (Behavior that violates this rule/expectation may be classified as a felony. The student and the parent/guardian shall be held responsible for any damage that results from such an act.)
11. Keep from defacing or vandalizing a school bus. Restitution will be required for any damages sustained to the bus.
12. Use the handrail when entering and leaving the bus. Be careful that loose straps or drawstrings on articles of clothing or backpacks do not get caught on the handrail.
13. Follow emergency evacuation procedures when appropriate.
14. Observe classroom conduct rules at all times (except for ordinary conversation). Silence on the bus shall prevail while the bus is stopped for railroad crossings or for discharging students. When the bus is in motion, only talk to the driver if it is necessary and be quiet when the driver turns the dome lights on, raises a hand, etc. One of these signals will be used at railroad crossings.
15. Use of profane or objectionable language or engaging in any other objectionable conduct is prohibited. There shall be no pushing, fighting or any other type of misconduct at any time.
16. Possession of sharp/dangerous instruments or any type of weapons on the bus is prohibited.
17. Bring no animals, glass containers, skateboards, food, or drinks on the bus.
18. Use or have no tobacco/nicotine products (smoking, vaping, dipping) or other mood-altering substances while on the bus.

19. Bring no bulky or inappropriate objects on school transportation that may block the driver's view or aisles and emergencyexits.
20. Wear no bathing suits on the bus.

Note: Liberty County buses are equipped with video/audio cameras for security purposes. Students are being taped during their ride. These tapes may be used to determine violations of the Code of Student Conduct. Only authorized school personnel can view a bus video/audio recording when the need arises, due to the protection of other students' privacy.

Students may use wireless communication devices (WCDs) on the bus.

*When a student is suspended, or expelled from the bus, they are not permitted to use **any** School Board of Liberty County, Florida, school bus for extracurricular activities or field trips during the suspension or expulsion timeframe. At the principal's discretion, a student with a Level I or II infraction may be allowed to ride the bus for extracurricular activities only or field trips that are academic in nature.*

Parents are responsible for their children at the bus stop. However, school officials may address misconduct by students at a bus stop. Bus drivers may issue bus referrals based on behavior they observe at bus stops and administrators may investigate and discipline accordingly. §§1006.07(2)(h), 1006.09(1)(b), and 1006.10(3), Florida Statutes

CELL PHONES AND/OR ANY ELECTRONIC COMMUNICATIONS DEVICES

Possession of a cellular telephone or other wireless communication device (WCD), by a student is a privilege, which may be forfeited by any student who fails to abide by the terms of this guideline, or otherwise engages in misuse of this privilege.

K-8 students are prohibited from using cellular telephones or other electroniccommunication devices (WCD) or having them "On" during the school day.
High School students may use wireless communication devices (WCDs) before andafter school, during their lunch break, between class periods, and during after school activities (e.g., extracurricular activities). "Using" refers to, not only the making and/or receiving of calls, but also using the cellular telephone or WCD for any other purpose (i.e., sending text messages, taking pictures, making recordings, etc.)

All Students
Students may not use cellular telephones or WCDs on school property or at a school sponsored activity to access and/or view Internet web sites that are otherwise blocked to students at school.

Upon entering the classroom, the student must store their cellphone in a teacher provided station. Cellphones must stay out of sight for the duration of the class period.

A student may keep the cellular telephone or WCD "on" if he/she has a special medical circumstance and it is approved by administration (e.g., an ill family member, or his/her own special medical condition).

Students participating in extra-curricular activities and athletics must contact their coach or sponsor for his/her rules involving cellular telephone or WCD use. Coaches and sponsors will set their rules and enforce consequences involving the use and/or misuse of these devices.

The School Board is not responsible for the loss, theft, damage, or vandalism to student cellular telephones or WCDs as well as other student property. Students and parents are strongly encouraged to take appropriate precautions, if students have cellular telephones or WCDs in their possession, to make sure the cellular telephones and WCDs are not left unattended or unsecured.

Using a cellular telephone or other WCD in an unauthorized manner or in violation of the policy, may result in loss of this privilege, additional disciplinary action (e.g., warnings, parental notification conferences, corporal punishment, suspension, or expulsion, confiscation of the cellular telephone or WCD (in which case, the cellular telephone or WCD will only be released/returned to the student after the student complies with any other disciplinary consequence that is imposed and/or referral to law enforcement if the violation involves an illegal activity (e.g., child pornography).

Additionally, use of a WCD in an unauthorized manner includes its use in recording a fight, battery, or any other inappropriate content; and/or sharing it with others (social media, airdrop, text, etc.). If students are caught recording this

material and sharing it, they will receive disciplinary action per the Student Code of Conduct (may include suspension).

Parents/guardians are advised that the best way to get in touch with their child during the school day is by calling the school office. Students may use school phones to contact parents/guardians during the school day with permission from the teacher or principal.

Note: *Use of a wireless communications device includes the possibility of the imposition of disciplinary action by the school or criminalpenalties if the device is used in a criminal act.* [SBP: 5136; §1006.07(2)(f), Florida Statutes] *See Infraction/Consequencesof the Parent-Student Handbook for specifics.*

DATING VIOLENCE AND ABUSE

It is the policy of the Liberty County School District that all of its students have an educational setting that is safe, secure, and free from dating violence and dating abuse. The District shall not tolerate dating violence or dating abuse of any kind. Dating violence and dating abuse by any student is prohibited on school property, during any school related or school sponsored program or activity, or during school sponsored transportation. **Dating violence** is a pattern of emotional, verbal, sexual, or physical abuse used by one person in a current or past intimate relationship to exert power and control over another when one or both of the partners is a student. **Dating abuse** is mistreatment which may include insults, coercion, social sabotage, sexual harassment, threats, and/or acts of physical or sexual abuse. The abusive partner uses this pattern of violent and coercive behavior to gain power and maintain control over the dating partner. [SBP: 5517.03; §1006.148, Florida Statute]

DRESS CODE POLICY

The Liberty County School District has existing policy in place that governs the dress code of staff and students. The schools have further guidance in their respective student handbooks. For the past few years, it has been a challenge to keep up with the numerous violations to these policies and procedures. This school year I would like to introduce you to our ***"Dressed for Success"*** initiative. Our job as a school district is to prepare our students for future success in the workplace. Students need to be prepared both in academics as well as in professionalism; and part of that professionalism is the way they dress. We prepare for that time now. There are 3 areas of focus for the ***"DRESSED FOR SUCCESS"*** initiative:

1. Wear clothes that are **APPROPRIATE** – Just as athletic teams wear uniforms that are appropriate for their respective roles, the workplace demands the same. Clothes that have holes, suggestive or offensive language, or dirty clothing are usually not accepted in the workplace whether in state government and/or the private sector. Each employer wants their employee to properly represent their companies. The first impression of anybody usually is based on the appropriateness of their clothes. We want our students to wear clothes that are **APPROPRIATE.**

2. Wear clothes that are **MODEST** - Appropriate clothing also must be modest clothing. The revealing of our bodies (chest, torso, and buttocks) can easily become a distraction in the classroom. High School students are continuing to mature physically on different timelines. We want our students to be proud of their bodies, but also be modest in their clothing choices as most jobs require. Extremely tight clothing and sometimes extremely loose clothing can reveal genitalia and/or underwear which ALWAYS distracts the learning process and is extremely unacceptable. Modest clothing covers up everything properly. Again, we want our students to be proud of their bodies but wear clothes that are **MODEST**.

3. Wear clothes that are **ACCEPTABLE** – We need our students to follow the dress code. It clearly states what clothes are acceptable and what clothing is not acceptable. These are the rules of the schools. Just as each business in the world of work has a dress code policy, the school does as well. It is great preparation for the work world to follow policy now. Dress Code policies differ from job to job, but the dress code for our schools is simple and easy to understand. We need to drastically reduce time lost in the classrooms due to students being sent home to change into clothes that are acceptable. We humbly ask for all our students to follow the rules and come to school wearing clothes that are **ACCEPTABLE**.

Many times, throughout the day, we have visitors to our schools. This last year we received visits from Governor DeSantis (twice), Senator Marco Rubio, Rep. Jason Shoaf, Sen. Lorrane Ausley and many other important people who came to see about all the wonderful things going on in the Liberty County School District. The most important folks that visit our schools are **PARENTS**. Parents are expecting us to help aid in the development of their children in many areas with education being the primary focus. We feel our appearance to each other and to others is an important part of that preparation for real life. We humbly ask all parents to be very involved in the lives of their children (our students) to make sure they wear clothes that are **APPROPRIATE, MODEST, AND**

ACCEPTABLE. We want ALL our students to be SUCCESSFUL and that starts at home as we work together to accomplish this goal. Please help us by making sure YOUR KIDS leave home ***"DRESSED FOR SUCCESS".***

Go Panthers and Go DAWGS!

Sincerely,
Kyle Peddie
Liberty County Superintendent of Schools

A student's apparel and grooming shall be the responsibility of the individual student and his or her parents or guardians in a manner that is consistent with the Code of Student Conduct. Each student is expected to dress appropriately and in such a manner that it is respectful to self and others. Dress and grooming shall be clean, healthy, and safe and shall not be permitted to disrupt the teaching and learning environment. Items that when worn together are usually indicative of gang memberships, or apparel that contains a message that is obscene, racist, or promotes illegal activities, (drug, alcohol, or tobacco/vaping products) shall not be permitted on school grounds or at school functions. Students shall not wear hats or sunglassesin the classroom, hallway or other indoor instructional spaces. Effective July 1, 2011 State Law prohibits a student, while on the grounds of a public school during the regular school day, from wearing clothing that exposes underwear or body parts in an indecent or vulgar manner or that disrupts the orderly learning environment. This dress code is designed to promote safety and good hygiene as well as allow students the convenience of dressing comfortably while at school. Encouraging students to dress appropriately for school will prepare them to be productive members of society. The principalshall determine when a student's personal hygiene, appearance, or dress is such that it disrupts or interferes with the educational process or endangers the health and safety of the student or others. [SBP: 5511] [§1001.43(1)(b), Florida Statutes]

PreK-3rd Grade Dress Code

1) Shorts, Skirts, and Dresses: Clothing should not be shorter than mid-thigh. This also includes slits/holes.
2) Shirts: all tops should be full length and cover all aspects of the chest and midriff at all times.
3) Pants: Pants should fit appropriately, without sagging, and hide all undergarments. (Underwear, boxers, shorts, etc.) Sheer materials or extremely tight clothing (leotards and tights) are not permitted unless worn under shorts or skirts.

4th – 12th Grade Dress Code

Tops: all tops should be full length and cover all aspects of the chest and midriff at all times.

a) Tank tops (straps less than 2"), crop tops, halter tops, or spaghetti straps are not permitted as a primary top.
b) Covering an inappropriate top with a sheer or see through top is not allowed.
c) Undergarments should not be visible at any time, including back area

Bottoms: all bottoms should fit appropriately and cover all parts of the undergarments.

a) Any bottoms with holes above mid-thigh are not permitted
b) Shorts should reach mid-thigh
c) Leggings are permitted but must be worn with a full-length shirt

Dress Code – ALL Students

1) Beachwear and pajamas are not permitted.
2) Appropriate shoes must be worn at all times (bedroom shoes are not permitted)
3) Head coverings are not permitted on campus. This includes but is not limited to hats, hoods, bandannas, do-rags, and caps. Exceptions may be made by the principal for special school activities or if the student is a member of a legally recognized religious organization requiring head covering or if there is a legitimate medical necessity.
4) Clothing, accessories, and jewelry must not be sexually suggestive or feature crude or vulgar commercial lettering, printing, or drawings which would be offensive or insensitive to anyone on campus. They may not depict drugs, tobacco, alcohol, or be indicative of gang membership. Accessories and jewelry must not cause physical harm (i.e., fishhooks on caps, gauges.)

Clothing for special programs (i.e. physical education) is not to be worn in the regular classroom. Uniforms for sports and special activities sponsored by the school and district may be exempt from the Student Dress Code if approved by the administration. Any administrator or designee shall make the final determination concerning questions regarding the appropriateness of dress for school and for school sponsored functions. Students who dressin a manner inconsistent with the approved Dress Code Policy will be required to change clothes. Students may be sent to ISS temporarily as they wait for their parents to arrive with clothing that meets the dress code.

Note: The principal or designee has the final authority for determining whether a student's apparel conforms to the dress code. The principal or designee may prohibit the use of clothing or items that cause disruption during school, on school transportation, or during school sponsored events. When it is determined that the apparel is inappropriate, parents/guardians will be asked to bring clothing to the school which will conform to this Code.

All dress code violations will be documented, and repeated violations will result in the following disciplinary actions:

Consequences for Dress Code Violations	
1st Referral	Parent Contact /Student Changes Clothes/ **(May lose privileges)**
2nd Referral	Parent Contact /Change Clothes/ Detention
3rd Referral	Parent Contact/Change Clothes/(1) day of ISS
4th Referral	Parent Contact/Change Clothes/(3) days of ISS
All students are expected to dress appropriately for school. Students who are dressed inappropriately will bedisciplined. Accommodations will be made for medical, cultural, and/or religious reasons.	

Note: The principal or designee has the final authority for determining whether or not a student's apparel conforms to the dress code. The principal or designee may prohibit the use of clothing or items that cause disruption during school, on school transportation, or during school sponsored events. When it is determined that the apparel is inappropriate, parents/guardians will be asked to bring clothing to the school which will conform to this Code.

GANGS AND GANG-RELATED ACTIVITY

The School Board of Liberty County, Florida, will not tolerate any gang related activity on school grounds, school-sponsored events, and/or school transportation, to include dress, tattoos, bandanas (to be used as gang identifiers), graffiti, hand signals, or verbal slang. Gang related activity may include, but is not limited to, engaging in any verbal, written, or physical act, which is associated with becoming a member of a gang, being a member of a gang, or participating in gang identified rituals or behaviors on a school campus or at a school sponsored program or activity. Violations that disrupt the educational process will lead to disciplinary action. If a student is identified or qualifies as a gang member, the student may be subject to expulsion. If a student qualifies as a gang member, subsequent violations of the Code of Student Conduct may be raised to the next level (i.e., Level I to Level II; Level II to Level III; Level III to Level IV).

It is therefore the policy of the School Board of Liberty County, Florida, that gangs and gang activities are prohibited in the School Board of Liberty County, Florida, according to the following:

A. "Gang" is defined as any ongoing organization, association, or group of three or more persons, whether formal or informal, having as one of its primary activities the commission of criminal/violent acts, and having a common name or common identifying sign, colors or symbols, or the purposeful violation of any School Board of Liberty County, Florida, policy,

B. No student on or about school property or at any school activity shall:
   1. Wear, possess, use, distribute, display, or sell any clothing, jewelry, emblem, badge, symbol, sign, or other item that evidences or reflects membership in or affiliation with any gang;
   2. Communicate either verbally or non-verbally (gestures, handshakes, slogans, drawings, etc.) to convey membership affiliation in any gang or that promotes gang affiliation;
   3. Engage in any act that encourages or promotes interests in any gang or gang activity, including, but not limited to:
      i. Soliciting membership in, or affiliation with, any gang;
      ii. Soliciting any person to pay for "protection," or threatening any person, explicitly or implicitly, with violence or with any other illegal or prohibited act;
      iii. Painting, writing, or otherwise inscribing gang-related graffiti, messages, symbols, or signs, on school or personal

property;

iv. Engaging in violence, extortion, or any other illegal act or other violation of school policy;
v. Soliciting any person to engage in physical violence against any other person.
vi. Engaging in the use of technology that encourages or promotes interests in any gang or gang activity.

The School Board of Liberty County, Florida, is working in conjunction with the Liberty County Sheriff's Office and Department of Juvenile Justice to deter gang activity on school campuses. Any student exhibiting gang activity/characteristics as described in this section will be photographed and information will be shared with local law enforcement. A student identified as a gang member by the School Resource Deputy/Officer will be photographed and entered into the Florida Department of Law Enforcement's Gang Net. [SBP: 5840; §§874.03 and 874.05, Florida Statutes]

HARASSMENT –The purpose of this policy is to inform and educate students of their responsibilities, rights, and complaint/grievance procedures with regards to harassment. Any threatening, insulting, or dehumanizing gesture, use of data or computer software, or written, verbal, or physical conduct that (1) places a student or school employee in reasonable fear of harm to his or her person or damage to his or her property, (2) has the effect of substantially interfering with a student's educational performance, opportunities, or benefits, or (3) has the effect of substantially disrupting the orderly operation of a school including any course of conduct directed at a specific person that causes substantial emotional distress in such a person and serves no legitimate purpose. The term "harassment" includes verbal or physical conduct that denigrates or shows hostility or aversion toward an individual. The term also includes sexual harassment, inappropriate verbal, non-verbal or physical conduct of a sexual nature when such conduct has the purpose or effect of unreasonably interfering with a student's educational performance. [SBP: 5517.01]

MEDICATION/HEALTH PROCEDURES: [SBP: 5330]

Prescription Medication

1. All prescription medications with current date must be presented in the original container to the principal/designee. Parent/guardian shall bring medication to school and sign a Prescription Medication Consent Form
2. Directions/instructions on using the prescription shall be provided by the physician or pharmacist.
3. The prescription medication shall be delivered to the office with the following information provided:
   A. Name and purpose of medication.
   B. Time medication is to be administered must coincide with doctor's order on the prescription.
   C. Approximate duration of medication.
   D. Reactions that might occur from the medication.
   E. Administration of Prescription Medication Consent Form must be completed and signed by parent/guardian.
   F. Medication must be counted by the parents/guardians and person receiving the medication and documented on the Medication Administration Form.
   G. All medication must be in the original container with a current date not to exceed 90 days and the label shall not be modified in any manner.
   H. The first dose of medication shall not be administered at school due to the possibility of allergic reaction.
   I. No more than a four (4) week supply should be delivered to the school at one time.
   J. All medication must be secured with lock and key.
   K. A student that needs to carry an inhaler must have a doctor's statement and parent/guardian written consent on the Prescription Consent Form. Inhalers that are carried by the student must have a prescription label with the student's name on the inhaler itself.
4. A student, who must carry an Epi-pen on their person at school, will be required to have a Medical Procedure Form completed and signed by physician and parent/guardian. The form must include a statement from the doctor and parent/guardian that the child must carry it on their person. A student who needs an Epi-pen at school, but does not need to carry it, must have the Medical Procedure Form completed and signed by the physician and parent/guardian. In both cases a staff member will be trained to assist and/or administer the EpiPen.
5. Only trained LCSB Staff shall administer medications to students.

Non-Prescription Medication

1. All non-prescription medication shall be delivered by parent/guardian.
   Non-prescription medication may be administered for 72 hours (three consecutive days) only with parental written consent on the Liberty County Schools Non-Prescription Form. After the 72-hour (three consecutive days) time frame, a standing order must be secured from the child's physician. The non-prescription medication shall be delivered to the office with the following information provided:

   A. Name and purpose of medication.
   B. Time and condition under which the medication is to be given.
   C. Specific instructions on the administration of the medication.
   D. Non-prescription medications are to be received in a new unopened container with 30 or less pills or no more than one-month supply.
   E. The consent form must be completed and signed by parent/guardian.
   F. The first dose of any medication shall not be administered during school hours due to the possibility of allergic reaction.
   G. All medication must be in original container and stored under lock and key.
   H. Please contact the nurse and/or principal at your child's school if you feel your child needs to keep non-prescription headache medication on them during the school day.
2. The School Board of Liberty County, Florida, may not administer the following non-prescription medications: cold remedies; aspirin; throat sprays; herbs; vitamins; cough drops; cough syrup; ear, eye, and nose medication; medicated lip balm.

Pediculosis (Head Lice)

Because the school brings a large number of children together in close daily contact, they serve as a focal point for the transmission of illnesses and other problems, including head lice. To combat head lice infestation and the spread of it, we have adopted the following policy:

All elementary students will be screened by the school nurse for evidence of head lice at the beginning of the school year and thereafter a datedetermined by the school principal. If identified as having evidence of head lice, the student's parent/guardian will be notified and the student will be excluded from school until they are determined to be NIT FREE by the school health nurse. When a student returns to school following treatment, he/she MUST be accompanied by a parent. The parent will be required to wait while the school health nurse rechecks the child's hair for evidence of head lice. If nits or head lice continue to be present, the child will not be allowed to return to school. The child must be NIT FREE to be readmitted in school.

Middle school and high school students will be screened by the school nurse if younger brothers or sisters are infested, if symptoms arepresent or if screening is requested.

The school will allow three (3) excused absences for head lice infestation. If the student is sent home before lunch, that day will be one of their three excused absence. If the student is sent home after lunch, the following day will be one of their three excused absence. Subsequent absences for the same infestation will NOT be excused since proper treatment of the affected student and the home environment should not take more than 24 hours.

Required Health Care Plans

Health Care Plans are developed under order of a licensed physician. If your child has a medical condition diagnosed by a licensed physician that may require a formal Health Care Plan, please contact Student Services at (850) 643-2275. Parent(s) must provide current medical documentation annually.

PARKING/VEHICLE RULES

The parking of a student's vehicle on campus is a privilege that is granted by the School Board of Liberty County, Florida, that may be conditioned upon the purchase of a parking decal at the school of attendance. Students who repeatedly violate campus-parking rules may have their parking decal revoked and/or are subject to disciplinary interventions. [SBP: 5515] Students must follow the school policies on driving and parking. Violation of the Code of Student Conduct policies or the school parking/driving policies may result in loss of privileges, suspension, or expulsion from school. [§1001.43(1)(f), Florida Statute]

Note: Privileges & Responsibilities: Parents are encouraged to review Florida law pertaining to the operation of motor vehicles by their children. High school students with operator's licenses may not be legally allowed to drive their vehiclehome after a late ball game. It is the student and parent's responsibility to know the law.

1. A student will not be permitted to drive any vehicle to school until filing with the principal the written consent of the student's parent/guardian and a written agreement to comply with all rules of the School Board of Liberty County, Florida, and local school officials. Students parking vehicles on campus without authorization are subject to disciplinary interventions.
2. After arriving at school a student shall remain on the school grounds unless given permission to leave the grounds as provided in these rules. At the close of the school day, the student shall leave the school grounds promptly unless under the supervision of a faculty member.
3. The student shall park a car driven to school in the area designated for student parking.
4. Each student who parks a vehicle on a school campus is presumed to know what is contained in the vehicle and will be held accountable for any weapons, drugs, contraband, etc. which may be found in the vehicle.
5. No student shall loiter in or around the parking area or areas.
6. Students shall not occupy cars during class hours, between classes, or before or after school except as they arrive and leave for the school day and travel to and from approved programs at other locations.
7. The principal shall cooperate with law enforcement officers. A student who receives a citation for a traffic violation while traveling to or from school, or who is known to be operating a vehicle in such a manner as to endanger the student's own safety or that of others, may at the principal's discretion lose the privilege of driving a vehicle to school. Any student violating such directive shall be subject to suspension or expulsion from school.
8. Students must follow all Florida Department of Motor Vehicle (DMV) traffic laws and regulations while on school property or be subject to citations.
9. Habitual truants will have their driver's licenses withheld/suspended by the Department of Highway Safety & Motor Vehicles.
10. Student parking is not provided at Liberty County middle school facilities; therefore, no middle school students are permitted to drive themselves to school.

ZONE WAIVER – Issuance of an out-of-zone waiver is considered a privilege; therefore, failure to uphold satisfactory conduct, attendance, and academic progress may result in revocation. Students attending a school on a zone waiver must provide his/her own transportation. Receipt of a zone waiver does not assure athletic eligibility at the receiving school. Athletic eligibility is subject to FHSAA rules and School Board Policy. [SBP: 5120]

SECTION IV: DISCIPLINARY CONSEQUENCES/INTERVENTIONS

Key: *Some disciplinary interventions require restitution for damages or the payment of a fee. Any fees from counseling on anger management, substance abuse, tobacco/vaping education, prevention or treatment programs that are stipulated in a student's alternative placement or alternative to suspension plan, as part of a disciplinary action, are the responsibility of the student and parent/guardian.

Administrative Placement (Due to Felony Charges) – Any student charged with a felony off campus or a delinquent act which allegedly occurred on property other than public school property which would be a felony if committed by an adult will be subject to suspension and administrative placement by the Superintendent/designee into an alternative setting if that incident is shown, in an administrative hearing, to have an adverse impact on the educational program, discipline, or welfare in the school in which the student is enrolled. Any felony that occurs on campus will be addressed by the school through the Code of Student Conduct regardless of whether the felony is pursued criminally through the state attorney. [SBP: 5500; §1006.09(2), Florida Statutes] An Adverse Impact administrative hearing for an ESE student with a disability must be part of the discipline review procedures described in the subsection ESE: Suspensions and Expulsions.

Alternative Disciplinary Placement (in Lieu of Expulsion) – Alternative disciplinary programs are those programs that are longer than ten (10) days in duration and are designed to serve students who are disruptive in the traditional school environment. Any student who is recommended for expulsion may be considered for placement, if available, by the school board or hearing officer, in an alternative educational setting in lieu of expulsion. Placement in an alternative disciplinary setting will involve a strict behavioral and attendance contract. In the event that either contract is violated, the expulsion goes into effect without further request for leniency from the board. [SBP:2451- State Board Rule 6A-6.0527]

Behavioral Contract (School Imposed) * – A behavior contract is an agreement in which the student must follow specific administrative directions in order to regain privileges. A student may be placed on a behavior contract for serious misconduct or for repeated misconduct at the principal's discretion provided the student's parent/guardian is notified promptly in writing. A student placed on a behavior contract may be required to attend anger management, mediation, or a life skills program as directed by the principal. The student's parent/guardian is to be notified of this requirement in writing.

Bus Suspension/Expulsion – A student who uses School Board provided transportation must abide by the rules of safety and behavior necessary for the operation of the system. Bus riders must follow rules in the Code of Student Conduct. Serious or repeated infractions of these rules may cause the student to lose the privilege of riding the bus. It is the responsibility of the parents/guardians to see that the student follows the rules or to provide for the student's own transportation. Suspension from a school bus does not affect the requirements of attendance laws and regulations. On the third referral, the parent/guardian will be notified that a fourth referral may result in suspension/expulsion from the bus. Level II or III Offenses may result in an out-of-school suspension and a Level IV may result in expulsion from school. By statute, criminal penalties may be imposed. See Mandatory Consequences for Bus Violations. [SBP 5610.04; §§1001.42, 1003.26, 1006.10, and 1006.21, Florida Statutes]

Community Control/Electronic Monitor – A student under court sanction who is ordered to wear an electronic monitor is required to cover the monitor with appropriate clothing that totally conceals the device, while at school and/or school sponsored events, so that other students are not aware of the student's use of the monitor.

Confiscation of Unauthorized Materials/Objects/Contraband – A student in possession of unauthorized materials, objects, or contraband may have items confiscated and not returned. School will not be held responsible for items that are confiscated. See Section IV: Level II Contraband Materials for descriptions.

Corporal Punishment – The moderate use of paddling in front of a witness by a teacher, principal/administrator may be necessary to maintain discipline or to enforce school rules. Parents may opt out to permit corporal punishment as a disciplinary intervention by signing and returning the consent/authorization form in this Code. [SBP: 5630; §§1003.32(1)(k), 1002.20(4), and 1003.01(7), Florida Statutes]

Counseling – Administrators may refer a student with identified needs to school guidance counselors for facilitation of services.

Drug Testing – School administrators may require a student drug test for reasonable suspicion with permission of the Director of Administration/designee. Parents are required to take their child to the designated lab for testing, on the day the reasonable suspicion is established, with all required paperwork from the school; however, the parent/guardian may not be present during the drug testing procedure. In the event the parent/guardian cannot take their child for the required drug tests, the school administrator/School Resource Deputy/Officer will take the student directly to the lab for testing after notifying and receiving parent/guardian consent prior to testing**.** If, in the judgment of the principal, a student is impaired or under the influence of a drug, said student shall accept the punishment assigned by the principal or submit to a drug test paid for by the School Board of Liberty County, Florida. In the event that a drug test is positive, the student and parent/guardian are responsible for payment of the screening fee. Any student who refuses to submit to drug screening or tampers with the drug test causing adulterated results will be considered "under the influence." In the event the student's parent chooses not to consent to the drug test then the student will have the same consequences as those under the influence. [§§1006.09 and 1006.13, Florida Statutes]

Expulsion – Expulsion is the removal of the right and obligation of a student to attend a public school and participate in other school activities. Any student who was previously recommended for expulsion may be brought to the Board for expulsion for any Level III or IV offense. [SBP 5610; §§1006.07 and 1006.09, Florida Statutes]

Felony – see Section IV: Administrative Placement Due to Felony Charges

In-School Suspension (ISS) – A student is temporarily removed from the student's regular school program and placed in an on-site alternative program for a period not to exceed ten (10) consecutive days. [§§1003.01 and 1006.07, Florida Statutes]

Law Enforcement Intervention – Law enforcement officials are assigned or may be called to campuses in order to assist school personnel in maintaining a safe environment.

Loss of Privileges – Students with multiple disciplinary actions may be subject to loss of privileges.

- driving or parking on any Liberty County School Board property;
- attendance and participation in extracurricular activities;
- attendance and participation in co-curricular activities; such as field trips and event days.

Mandatory Parent Conference – Administrators may require a parent conference in order to prevent a student's behavior from rising to a level that may result in serious consequences.

No-Contact Orders – When a student has been adjudicated guilty, delinquent, or has adjudication withheld for felony violations of certain crimes as outlined in Florida Statutes, the juvenile court may issue a "no contact order" requiring that the student refrain from attending the same school or riding the same school bus as the victim or victim's siblings at the expense of the adjudicated student. [§1006.13(5) (a-d), Florida Statutes]

Out-of-District Expelled Students – Any student, who has been expelled from another school district, shall not be permitted to transfer, enroll, or be admitted to a Liberty County, Florida, school. This prohibition shall be in effect for the period of time which the student was expelled from the out-of-county school district. [§1006.07(1)(b), Florida Statutes]

Parental Contact – Parents/Guardians will be notified by written or verbal communication of disciplinary procedures when taken as a result of a referral based on a student's actions which results in ISS, corporal punishment, OSS, expulsion, or criminal charges.

Child Study Team – The Child Study Team uses the Response to Intervention process. The Child Study Teams are small groups of educational professionals who work together to provide and/or coordinate specific targeted evidenced-based interventions for a student regarding academic, attendance or behavioral concerns. School personnel or parents/guardians may initiate the Response to Intervention process to discuss a problem and possible interventions that would assist the student in becoming more successful in the school environment. Classroom interventions and/or community-based agencies may be utilized. Guidance counselors usually provide the leadership for these meetings.

Restitution – Students will be required to pay for any and all damages resulting from his/her actions while on school grounds, school transportation, or at a school sponsored activity.

Search, Seizure, and Detainment – A school principal or a school employee designated by the principal, if she or he has reasonable suspicion that a prohibited or illegally possessed substance or object is contained within a student's locker or other storage area, may search the locker or storage area. This subsection does not prohibit the use of metal detectors or specially trained animals in the course of a search for illegally possessed substances or objects. Other student storage areas include, but are not limited to, lockers, vehicle, purse, backpack and other personal possessions. If the student refuses to comply, the principal/designee may detain the student until law enforcement and/or the student's parents/guardians are called. These are safety precautions to provide a safe and healthy school in which to learn. Search of a student's person or intimate personal belongings shall be conducted by a person of the student's gender, in the presence of another staff member of the same gender, and only in exceptional circumstances when the health or safety of the student or of others is immediately threatened Strip searches of students by school staff are not allowed. [SBP 5771; §§1006.09(9) and 1001.43(1)(e), Florida Statutes]

Substance Abuse Program, Mandatory State-Licensed – Any student possessing or under the influence of intoxicating beverages, mood-altering or counterfeit controlled substances, over-the-counter medication on school grounds or at any school-sponsored activity will be required to begin attending a state-licensed, substance abuse program. Referrals will be made to appropriate community agencies. [§1001.43(1)(a), Florida Statute]

Suspension – The temporary removal of a student from the regular school program shall be for a period not to exceed ten school days per suspension. The Superintendent may impose additional days in order to schedule an expulsion hearing. [§§1006.07 and 1006.09, Florida Statutes]

All School Levels: In the event of a long-term assignment (e.g. book reports, research papers) assigned before the suspension with a due date occurring during the days of suspension, the work must be turned in the number of days absent, plus one after the student returns to school. A student with a school imposed unexcused absence during a nine weeks, semester, or final exam must make up that examination at a time designated by the principal/designee. **A student receiving an out-of-school suspension may not participate in ANY activity or extra-curricular activity of the Liberty County School Board. Any Liberty County student who is currently suspended or who has been expelled and who enters or remains upon any School Board facility commits a trespass and is guilty of a misdemeanor of the second degree.** [§810.097(1)(b), Florida Statute]. **Violation of suspension guidelines may result in the issuance of a trespass warrant, referral to law enforcement, and/or additional suspension days.** Any student who commits an act on school grounds or on a school bus which results in suspension during the last week of school shall be suspended for the remaining number of days of the suspension period when school opens the following year

Use of Reasonable Force – The law allows school personnel to use reasonable force for self-protection or to protect other students from disruptive students, and to prevent disruption of the orderly conduct of the school. [§§1006.09, 1003.32, 1006.11, Florida Statutes]

Warning/Verbal Reprimand – A student will meet with an administrator, discuss the infraction, be advised as to an acceptable action that could have been taken, and warned of future consequences if unacceptable actions continue.

Work Assignment/Work Detail – A student may be assigned some form of physical activity, often involving cleaning or beautification of school property.

INFRACTIONS: LEVEL I

Any serious and/or repeated Level I Infractions may be considered as Level II-IV Infractions. Level Ioffenses committed in a more serious, harmful, or disruptive manner may be considered Level II-IV Infractions. The following Level I infractions are prohibited:

Bus Misconduct – willful disobedience of one or more of the bus rules or school rules [I: 6]. **–** If the bus infraction is deemed to be serious, it may result in suspension from school. [SBP: 5610.04] (see Section III: Bus Conduct)

Cheating – willful or deliberate unauthorized use of the work of another person for academic purposes, or inappropriate use of notes or other material in the completion of an academic assignment or test. A student who is found to have cheated on a school assignment will not receive credit for that assignment and will be disciplined in accordance with this Code of Student Conduct. When grade reduction is determined to be the appropriate disciplinary measure, the student's parent(s) or legal guardian shall be notified.

Defacing or Failure to Account for Materials – willful destruction or loss of textbooks, media, or other school owned materials – Failure to pay for lost or damaged books/materials may result in loss of privileges. [SBP: 7440.02; §1006.42(1), Florida Statute]

Disrespect of Minor Nature – conduct or behavior that lacks regard, civility, politeness and/or courteous consideration for a person or group of persons – This may include, but is not limited to, teasing, name calling, gossiping, spreading or starting rumors, and purposely embarrassing or humiliating another person.

Dress Code Violation – non-conformity to the established dress code – (see Section III: Dress Code). [SBP: 5511]

Energy Products – the use of energy products with a high content of caffeine and/or energy blends on school grounds, transportation, or at a school related activity. Energy blend is defined as products containing, but not limited to, L. Carnitine, Glucose, Caffeine, Guarana, Inositol, Glucuronolactone, and Maltodextrin. A product shall be considered to be high in content of caffeine and/or energy blend if the product contains over 70 mg of caffeine or energy blend for 8 ounces (i.e. Red Bull, 5-Hour Energy, Monster, Amp, RockStar, Team Realtree).

Plagiarism – the use of ideas or words of another as one's own; work presented as new and original, an idea or product derived from an existing source. A student who is found to have plagiarized on a school assignment willnot receive credit for that assignment and will be disciplined in accordance with the Code of Student Conduct. When grade reduction is determined to be the appropriate disciplinary measure, the student's parent/guardianshall be notified.

Public Display of Affection – any inappropriate behavior between 2 or more students which involves kissing, hugging, touching, sitting, etc.

Prohibited Sales – items brought to school for the purpose of a sale unrelated to an approved school activity.

Tardiness – late arrival to school or class without valid documentation from parent/guardian or authorized school personnel –Repeated tardiness may be considered habitual truancy (see Section III: Attendance Rules).

Theft of a Minimal Nature- unauthorized taking, carrying, riding away, or concealing the property of another person without threat, violence, or bodily harm. Item (s) replacement value of $50 or less.

Vehicle Violation – failure to adhere to the district and school vehicle guidelines – (see Section III: Vehicle Rules). [SBP: 5515]

DISCIPLINARY INTERVENTIONS AND OR CONSEQUENCES: LEVEL I

- Suspension [In-School and Out-of-School]
- Corporal Punishment (paddling)
- Loss of Privileges
- Detention
- Restitution
- Confiscation of Unauthorized Materials/Objects/Contraband
- Zone Waiver Revocation (See Section III)
- Work Assignment/ Work Detail
- Conference with Student
- Mediation/Restoration
- Parent Contact
- Warning/Verbal Reprimand
- Problem Solving Team
- Threat Assessment
- Detention
- Other Appropriate Interventions (as determined by local administration)
- Mandatory Parent Conference
- Grade Reduction (Cheating/Plagiarism only)

INFRACTIONS: LEVEL II

Any serious and/or repeated Level II Infractions may be considered as Level III-IV Infractions. Level II offenses committed in a more serious, harmful, or disruptive manner may be considered Level III-IV Infractions. The following Level II infractions are prohibited:

Abusive, Profane, Obscene Language/Materials – use of either oral or written language, electronic messages, gestures, objects, pornography, or pictures which are disrespectful or socially unacceptable.

Aggressive Act — an act that includes, but is not limited to hitting, kicking, pushing, tripping, or biting another individual. This act has only one aggressor or occurs without provocation.

Attendance Rules Violation (Skipping) – willful disobedience of district and/or school attendance rules **–** The law requires mandatory school attendance until the age of 18 (see Section III: Attendance Rules regarding compulsory school age). If a student arrives at school and then leaves campus without school permission, the student is unexcused and truant and the school must take disciplinary action. [§1003.21, Florida Statute]

Careless or Malicious Action – action that results in the injury of person(s) or damage to property

Cell Phones and/or any Electronic Communications Device – failure to adhere to the district and school cell phone (Ear buds / AirPods) guidelines – (see Section III: Cell Phones)

Combustibles/Minor – bringing or possessing, lighters or matches on school grounds, transportation, or at a school related activity

Contraband Materials – include, but are not limited to ammunition, laser instruments, electronics (not including calculators), and beverage mixers intended to be consumed with alcohol –The possession, use, sale and/or distribution of contraband materials on school grounds, school-sponsored events, and/or on school transportation is prohibited. The school will not be held responsible for lost or stolen contraband materials. [§1006.07(2)(e), Florida Statute]

Defiance of Authority, Willful Disrespect, or Interference with School Authority – non-verbal refusal to comply with school rules or directions from school authority, refusal to identify one's self, giving false information or disrespect of school authority on or off campus. [§§1006.08(1), 1006.09, 1006.09(1)(c), Florida Statutes]

Disobedience—failure to comply with school rules

Disrespect – conduct or behavior which demeans, degrades, antagonizes, humiliates, or embarrasses a person or group of persons. This includes, but is not limited to, hurtful acts, words or other behavior committed by one or more students against another.

Disruption/Horseplay(Non-SESIR) – any act that substantially disrupts the orderly conduct of a school function, the orderly learning environment, or poses a threat to the health, safety, and/or welfare of students, staff, or others.

Forgery – The making of a false or misleading written communication to a school staff member with either the intent to deceive the staff member or under circumstances which would be reasonably calculated to deceive the staff member. Signing or allowing others to sign your parent's name to a school paper.

Medication Policy Violation – refer to Section III: Medication/Health Procedures [SBP: 5330; §1006.062, Florida Statute]

Missed Detention – Non-attendance at an assigned detention

Physical Altercations – physical conflicts between two or more persons that do not require physical restraint or cause injury, at principal's discretion, without regard to who was the original aggressor. This offense remains in effect the entire calendar year for Liberty County School District students involved in a fight on school property.

Skipping (class) – intentionally not reporting to the assigned area, within 10 minutes of tardy bell.

Skipping Leaving campus – intentionally leaving campus without permission, this includes adjacent stores such as the pharmacy.

Technology Violation – using technology in a manner that is inappropriate, but is not harmful or destructive (see Section III, Technology).

Theft of a Minor Nature – unauthorized taking, carrying, riding away, or concealing the property of another person without threat, violence, or bodily harm. – *Items under this heading would have a replacement value of less than $300.00.* [§812.014, Florida Statute]

Unauthorized Assembly, Publications, Petitions, Electronic Messages – demonstrations and/or petitions by students, or possession and/or distribution of unauthorized publications, including misuse of electronic messages which interfere with the orderly process of the school environment, a school function, or extracurricular activity

Vandalism of a Minor Nature – intentional destruction, damage, or defacement of public or private property, real or personal, without consent of the owner or the person having custody or control of it – *Damage must be valued at less than $1,000, including* time and labor to be considered under this heading. [SBP: 7440.02]

DISCIPLINARY INTERACTIONS AND OR CONSEQUENCES LEVEL II

- Parent Contact
- Detention
- Threat Assessment
- Loss of Privileges
- Behavior Contract
- In-School Suspension (ISS)
- Detention
- Work Assignment/Work Detail
- Conference with Student
- Zone Waiver Revocation (See Section III)
- Other Appropriate Interventions (as determined by local administration)
- Mediation/Restoration
- Expulsion
- Corporal Punishment (paddling)
- Confiscation of Unauthorized Materials/Objects/Contraband
- Law Enforcement Intervention
- Bus Suspensions [A: 11]; Bus Expulsion
- Problem Solving Team
- Suspension (Out of School (OSS)
- Restitution
- Mandatory Parent Conference

INFRACTIONS: LEVEL III

Any serious and/or repeated Level III Infractions may be considered as Level IV Infractions. Level III offenses committed in a more serious, harmful, or disruptive manner may be considered Level IV Infractions. The following Level III infractions are prohibited and violators will be subject to school disciplinary interventions and possible criminal prosecution.

Breaking & Entering/Burglary – unlawful entry with force, or unauthorized presence in a building or other structure or conveyance with evidence of the intent to damage or remove property or harm a person(s). [(SESIR); §§810.02, 810.08, 810.09, and 810.097, Florida Statutes;

Bullying – Systematically and chronically inflicting physical hurt or psychological distress on one or more students or employees that is severe or pervasive enough to create an intimidating, hostile, or offensive environment; or unreasonably interfere with the individual's school performance or participation. (See Section III: Bullying and Other Forms of Aggression) [(SESIR); SBP: 5517.01; §1006.147, Florida Statute]

Dangerous Instruments – possession, distribution of materials, paraphernalia, or items that are dangerous. Possession of a dangerous instrument may be considered under this heading if there has been no threatening or intimidating display of the dangerous instrument. Dangerous instruments shall include, but not be limited to, clubs, blow guns, chains, pipes (any length, metal or otherwise), ice picks or other pointed instruments, nunchakas, Chinese stars, pepper spray, mace, laser instruments, common pocketknives, BB guns, pellet guns, paintball guns, air soft guns, slingshots, imitation weapons or firearms made of plastic, metal, wood or any other material which may be used in a harmful manner. Students shall be prohibited from carrying or concealing items considered to be dangerous instruments while on school grounds, buses, in school buildings, at school sponsored events, and vehicles parked on school grounds or adjacent thereto for school related activities. A pocketknife shall be defined as a folding knife with a blade less than four (4") inches. If a student unintentionally brings a pocketknife to school or to a bus stop, the student should immediately turn it over to school officials upon boarding the bus or arrival on school grounds. The principal will decide what action is to be taken**.** A student may be suspended for 10 days and be recommended for expulsion from school for possession of a dangerous instrument. [§1001.43, Florida Statute]

***Note*: Dangerous Instruments used in a threatening or intimidating manner may be considered a Level IV infraction. A threat to use a dangerous instrument on school grounds, on school sponsored transportation, or at any school sponsored activity is prohibited. [(SESIR)]**

Dating Violence and Abuse - (See Section III: Dating Violence and Abuse) [SBP: 5517.03; §1006.148, Florida Statute]

Disruption on Campus – Major – any act that substantially disrupts the orderly conduct of a school function, the orderly learning environment, or poses a threat to the health, safety, and/or welfare of students, staff, or others [(SESIR); §§1006.09 and 1006.145, Florida Statutes]

Drugs/Over-the-Counter – use, possession, or distribution of over-the-counter or mood-altering substances, or any substances represented as drugs or drug paraphernalia – Repeated incidents will be handled as a Level IV Infraction. Students on medication must abide by established district procedures (see Section III, Medication/Health Procedures).

Extortion - to obtain from a person by force, intimidation, or undue or illegal power.

False Fire Alarm/911 Calls – activation of a fire alarm or other emergency services without reasonable cause, which in the discretion of the principal, was the result of a reckless or malicious act [(SESIR); §806.101, Florida Statute]

Fighting – two or more persons mutually participating in use of force or physical violence that requires physical restraint or results in injury requiring first aid or medical attention is considered fighting. Depending on circumstances, students may not be punished when defending themselves from the aggressor of the fight. This offense remains in effect the entire calendar year for Liberty County School District students involved in a fight on school property. (SESIR)

Fireworks – bringing, possessing, or using fireworks on school grounds, transportation, or a school related activity – This infraction could be considered under Level IV: Threats/Explosives. The fireworks may be considered as explosives if they meet the statutory definition. [(SESIR) for major fireworks; §791.001, Florida Statute]

Gang-Related Activity – (see Section III: Gangs and Gang-Related Activity). [Gang Related Activity or (SESIR)—Gang Activity; [SBP: 5840]

Harassment/Hate Speech – Any threatening, insulting, or dehumanizing gesture, use of data or computer software, or written, verbal, orphysical conduct that (1) places a student or school employee in reasonable fear of harm to his or her person or damage to his or her property, (2) has the effect of substantially interfering with a student's educational performance, opportunities, orbenefits, or (3) has the effect of substantially disrupting the orderly operation of a school including any course of conduct directed at a specific person that causes substantial emotional distress in such a person and serves no legitimate purpose anywillful and/or deliberate word or act (including racial comments)**,** of a serious nature based upon race, color, religion, sex, gender, age, national or ethnic origin, political beliefs, marital/family status, disability or disabling condition, social or family background, or harassment for any other reason. (See Section III: Harassment) [SBP: 5517.01]

Motor Vehicle Theft – theft or attempted theft of a motor vehicle [(SESIR)]

Other Major – any serious, harmful incident resulting in the need for law enforcement intervention not previously classified. Other major includes, but is not limited to, producing or knowingly using counterfeit money, participating in gambling activities, possessing child pornography, or possessing drug paraphernalia. [(SESIR)]

Physical Attack- Physical Attack refers to an actual and intentional striking of another person against his/her will, or the intentional causing of bodily harm to an individual. This offense remains in effect the entire calendar year for Liberty County School District students involved in a fight on school property. (SESIR)

Sexual Offenses – any willful and/or deliberate act committed with the intention of promoting sexual favors, or any lewd or lascivious act – Any unsolicited sexual proposal, consensual sex or physical conduct of a sexual nature, offensive touching of another person, any act of indecent exposure, obscenities such as phone calls or other communication are included under this heading, as well as, the unlawful manufacturing, publishing, selling, buying, or possessing materials including, but not limited to, literature, photographs, or media from electronic devices. [(SESIR)]

Technology Violations – inappropriate use, distribution of illegal or improper material, modification, or intentional destruction of hardware, software, or data.

Theft/Larceny – act of taking, carrying, leading, riding away or concealing the property of another person without threat, violence, or bodily harm – *Items under this heading would have a replacement value of $750.00 or more.* [(SESIR)]

Threat/Intimidation/ – a threat to cause physical harm to another person with or without the use of a weapon that includes all of the following elements: (1) intent – an intention that the threat is heard or seen by the person who is the object of the threat; (2) fear – a reasonable fear or apprehension by the person who is the object of the threat that the threat could be carried out; and (3) capability – the ability of the offender to actually carry out the threat directly or by a weapon or other instrument that can easily be obtained. Threatening any school board employee shall be considered a Level IV infraction. Threats and implied threats, verbal or written, even if within an academic assignment or stated in humor, will be taken as an actual threat. [(SESIR); §914.23, Florida Statute]

Threat of Death, Written/Verbal - A written or verbal threat to kill another. Follow procedure for Threat/Intimidation as outlined. [(SESIR); §914.23, Florida Statute] Student makes a death threat: immediate removal (home and/or alternate placement) pending investigation which will not exceed 10 days and all academic assignments will be provided. During this time an investigation takes place, that will, as appropriate include a psychological evaluation. Upon completion of initial investigation, a committee composed of principal, guidance counselor, teacher, at least one district staff person, andany other pertinent personnel (Threat Assessment Team) will make a recommendation to the Superintendent regarding disciplinary action. If the Sheriff's department has an ongoing investigation that exceeds the 10 days stated above additional removal days will be assigned until the completion of the investigation. The discipline provided by the school is independent

of any charges by law enforcement. Possible disciplinary actions at the conclusion of the investigation may include the following;

- Expulsion for a period of 180 days
- Placement at Alternative program for up to 180 days (30, 60, 90, 120, 180)
    - Placement must be completed prior to returning to assigned school
- Out of School Suspension

Threat Risk Assessment– When a direct or indirect verbal comment or unusually intense physical contact with a degree of violence is committed by a student, the school site leadership team will determine whether or not to proceed with a Threat Risk Assessment. The assessment will consist of obtaining information from the student and the parent by student services personnel that may include the school psychologist, school social worker or school guidance counselor and school-based personnel such as administrators and teachers. If, after the threat assessment, the threat has been determined to have impact on the safety of students and/or school personnel appropriate disciplinary action will result which could include alternate placement, suspension or expulsion. A threat assessment for a student with an ESE disability must be a part of the discipline review procedures described in the subsection ESE: Suspensions and Expulsions.

Tobacco/Vaping/Nicotine* – the possession, use, distribution, or sale of tobacco/nicotine products, to include vaping products, on school grounds, school-sponsored events, and/or on school transportation by any student – Violators may be subject to non-criminalfines and may be required to complete a Board Approved Tobacco Education Program (see Section IV, Tobacco Education Program). A law enforcement official may issue a citation to any person found smoking tobacco/vaping on school grounds. Such non-criminal violations are punishable by a fine of not more than $100 for the first violation and not more than $500 for each subsequent violation. [(SESIR); SBP: 5512; §§386.212, 386.204, and 386.208, Florida Statutes]

Trespassing – to enter or remain on school grounds/campus, school transportation, or at a school-sponsored event/off campus without authorization or invitation and with no lawful purpose for entry. [(SESIR); SBP: 5500; §810.097, Florida Statute]

Vandalism – intentional destruction, damage, or defacement of public or private/personal property, without consent of the owner or the person having custody or control of it – *Damage must be valued at $1,000 or more* including time and labor to be considered under this heading. [(SESIR); SBP: 7440.02]

DISCIPLINARY CONSEQUENCES AND OR INTERVENTIONS: LEVEL III

- Law Enforcement Intervention
- Expulsion (from School)
- Bus Suspension
- Bus Expulsion
- Threat Assessment
- Other Appropriate Interventions (as determined by local administration, example: in-school suspension)
- Conference with Student
- Mandatory Parent Conference
- Suspension Extended, Pending Hearing
- Zone Waiver Revocation (See Section III)
- Suspension (Out of School (OSS)) (1-10 day)
- Alternative Disciplinary Placement, 6-12
- Administrative Placement (due to felony charges off campus)
- Restitution
- Problem Solving Team
- Prevention or Treatment Program
- Behavioral Contract
- ESE – Change in Placement – 45 days – Interim Alternative Educational Setting

INFRACTIONS: LEVEL IV

Any serious and/or repeated Level I-III Infractions may be considered as Level IV Infractions. Level I-III offenses committed in a more serious, harmful, or disruptive manner may be considered a Level IV Infraction. The followingLevel IV infractions are prohibited and violators will be subject to school disciplinary interventions and possible criminal prosecution.

❖ **(See Mandatory Level IV Intervention)**

- **(See Mandatory Level IV Intervention)**

The following Level IV infractions are prohibited:

- **Alcohol** – Possession, sale, purchase, distribution, or use of alcoholic beverages. Use will be reported only when the person is caught in the act of using or is discovered to have used in the course of an investigation. violation of laws or ordinances prohibiting the distribution, manufacture, sale, purchase, transportation or use of any intoxicating alcoholic beverages – Students in violation may be required to attend the substance abuse program (see Section IV, Substance Abuse Program). The student or substance may be subject to testing. [(SESIR)]

- **Arson** – (intentionally setting a fire to school property) to damage or cause to be damaged, by fire or explosion, any dwelling, structure, or conveyance, whether occupied or not, or its contents [(SESIR)]

- **Assault or Battery on Specified Official or Employee** – committing an assault or aggravated assault or a battery or aggravated battery upon an employee of the School Board of Liberty County, Florida, when the person committing the offense knows or has reason to know the identity or position or employment of the victim – An assault is an intentional, unlawful threat by word or act to do violence to the person of another, coupled with an apparent ability to do so, and doing some act which creates a well-founded fear in such other person that such violence is imminent. In such cases, the offense shall be reclassified to the next higher level. [SBP: 5500; §§784.011,784.081, Florida Statutes]

- **Battery** – physical use of force or violence by an individual against any other individual when the force or violence is carried out against a person who is not fighting back [(SESIR)]

❖ **Biological/Chemical Attack or Threats** – making, or involved in making, a chemical or biological attack or threat against a school, a school function, or any person at a school or a school function whether real, implied, or fabricated. In addition to the mandatory intervention, student(s) will be required to participate in counseling services and will be reported to law enforcement for prosecution to the fullest extent of the law.

- **Bomb Threats/Explosives** – any communication which has the effect of threatening an explosion to do malicious, destructive, or physical harm to school property or bodily harm to the person(s) in or on that property or attending a school function or extracurricular activity – This includes but is not limited to threat by telephone, telecommunications/electronic communications, spoken word, or written word. Also prohibited are preparing, possessing, using, or igniting destructive or explosive devices on school property or at a school function or extracurricular activity. Destructive device means any bomb, grenade, mine, rocket, missile, pipe bomb, or similar device containing an explosive, incendiary, or poison gas and includes any frangible container filled with an explosive, incendiary, explosive gas, or expanding gas, which is designed or so constructed as to explode such filler and is capable of causing bodily harm or property damage. An explosive is any chemical compound or mixture that has the property of yielding readily to combustion or oxidation upon application of heat, flame, or shock, including but not limited to dynamite, nitroglycerin, trinitrotoluene, or ammonium nitrate when combined with other ingredients to form an explosive mixture, blasting caps, detonators, and fireworks. [(SESIR)]

- **Boycotts/Riots/Sit-ins/Walkouts/School Disruption** – the willful act of inciting, leading, or participating in any disruptive act (including gang related activities, organized skip day, strike) that interferes with the educational process; results in significant damage or destruction to public or private property (including electronic communication devices);

causes personal injury to participants and others; or otherwise poses a threat to the health, safety, and/or welfare of students, staff, or others – By statute, criminal penalties may also be imposed. [(SESIR)]

- **Drug Sale/Distribution – Excluding Alcohol** – distribution, cultivation, manufacture, sale, purchase, or repeated incidents of any controlled drug, narcotic substance, or any substances represented to be a drug, narcotic, or controlled substance – Students in violation are required to attend the substance abuse program (see Section IV: Substance Abuse Program). The student or substance may be required to be tested (see Section IV: Drug Testing). [(SESIR)]

- **Drug Use/Possession**– using, possessing or being under the influence of any controlled drug, illegal, or narcotic substance or any substances represented to contain, mimic or that looks like a narcotic drug, hallucinogenic drug, amphetamine, barbiturate, marijuana, stimulant, depressant, intoxicant, or controlled substance of any kind, or any substance when used for hallucinogenic purposes. – Substance includes, but is not limited to, any substance that contains or is represented to contain chemicals, any substance that produces the same effect as or is represented to produce the same effect as a controlled substance, or any analogue of a controlled substance including, but not limited to, K-2, also known as "spice" or "legal weed." Students in violation are required to take the substance abuse program (see Section IV, Substance Abuse Program). The student or substance may be subject to testing. Elementary school principals shall try to determine intent in cases involving student possession prior to enforcing a suspension. See Other Major. [(SESIR); §§1001.43, 1006.07, and 1006.09, Florida Statutes]

- **False Accusations Against Staff** – any student intentionally making false accusations against a member of the school staff that could jeopardize that employee's employment, professional reputation, or certification may be subject to expulsion.

- **False Accusations Against Student** – any student intentionally making false accusations against another student that could jeopardize his discipline record, reputation, or academic standing may be subject to suspension and/or expulsion based on the severity of the accusation and the resulting disruption to the school environment.

- **False Reports –** making a false report, with intent to deceive, mislead, or otherwise misinform any person, concerning the placing or planting of any bomb, dynamite, other deadly explosive, or weapon of mass destruction as defined in the Florida Statute s. 790.166. [(SESIR); §§790.163 and 1006.07(2)(l), Florida Statutes]

- **Felony Charges (Off Campus)** – (see Section IV, Administrative Placement) [§1006.09(2), Florida Statutes]

- **Firearms** – the possession, use, or control of any firearm (operable or inoperable, loaded or unloaded), is prohibited – Firearm means any weapon (including a starter gun) which will, is designed to, or may readily be converted to expel a projectile by the action of an explosive; the frame or receiver of any such weapon; any firearm muffler or firearm silencer; any destructive device; or any machine gun. The term "firearm" does not include an antique firearm unless the antique firearm is used in the commission of a crime. [§790.001(6), Florida Statutes] By statute, criminal prosecution may also result. The School Board of Liberty County, Florida, will not tolerate firearms of any nature being taken on school property, transportation, or at any school function, whether on or off the school campus, in any manner at any time, and considers this notice as fair warning to all concerned of the serious consequences for violations of this policy. [(SESIR); SBP: 5500; §§1006.07(2)(k), 790.162, and 790.163, Florida Statutes] (House Bill 7029 amends section 1006.07 Florida Statute and states students should not be disciplined or referred to law enforcement for simulating a firearm or weapon while playing or wearing clothing or accessories which depict a firearm or weapon or an opinion regarding Second Amendment rights. Examples: may include but are not limited to possessing a toy firearm or weapon that is 2 inches or less in overall length, possessing a toy firearm or weapon made of plastic snap-together building blocks, using a finger or a hand to simulate a weapon, vocalizing an imaginary firearm or weapon, drawing a picture, or possessing an image of a firearm or weapon, using a pencil, pen or other writing device or drawing utensils to simulate a firearm or weapon. Students may be subject to disciplinary action if the violation substantially disrupts student learning, causing bodily harm to another person or places another person in reasonable fear of bodily harm.

- **Hazing** – Hazing means any action or situation that recklessly or intentionally endangers the mental or physical health or safety of a student at a high school with grades 9 through 12 for purposes including, but not limited to, initiation or admission into or affiliation with any organization operating under the sanction of a high school with grades 9 through

12. Hazing includes, but is not limited to, pressuring or coercing the student into violating state or federal law, any brutality of a physical nature, such as whipping, beating, branding, exposure to the elements, forced consumption of any food, liquor, drug, or other substance, or other forced physical activity that could adversely affect the physical health or safety of the student, and also includes any activity that would subject the student to extreme mental stress, such as sleep deprivation, forced exclusion from social contact, forced conduct that could result in extreme embarrassment, or other forced activity that could adversely affect the mental health or dignity of the student.

By statute, criminal penalties may also be imposed. *Hazing may consist of activities that occur on or off school grounds.* If the investigation results in a finding that a student(s) committed an act of hazing or otherwise violated this Code of Student Conduct, that student(s) shall be subject to appropriate disciplinary action. (This act was intended for student's grades 9-12, but will be enforced with *any* student at any grade level involved in hazing activities). [(SESIR); §§1006.135, 775.082, 775.083, Florida Statutes]

- **Homicide: Murder/Manslaughter** – The unjustified killing of one human being by another. Manslaughter is the killing of a human being by the act, procurement, or culpable negligence of another, without lawful justification. [(SESIR)]

- **Kidnapping/Abduction** – forcibly, or by threat, confining, abducting, or imprisoning another person against his/her will and without lawful authority [(SESIR)]

❖ **Robbery** – taking or attempted taking of anything of value that is owned by another person or organization, under the confrontational circumstances of force, or threat of force or violence, and/or by putting the victim in fear [(SESIR)]

❖ **Sexual Battery** – any sexual act or attempt directed against another person, forcibly and/or against the person's will including persons incapable of giving consent because of age or because of temporary or permanent mental incapacity – The category includes rape, touching of private parts of another person (either through human contact or using an object), child molestation, and sodomy. This level warrants calling law enforcement. [(SESIR)]

- **Sexual Harassment** – unwanted verbal or physical behavior with sexual connotations by an adult or student that is severe or pervasive enough to create an intimidating, hostile or offensive educational environment, cause discomfort or humiliation or unreasonably interfere with the individual's school performance or participation. An incident when one person demands a sexual favor from another under the threat of physical harm or adverse consequence. Any slur, innuendo, or other verbal or physical conduct reflecting on an individual's gender which has the purpose of creating an intimidating, hostile, or offensive educational environment; has the purpose or effect of unreasonable interference with an individual's work or school performance or participation; or otherwise affects an individual's educational opportunities is prohibited. By statute, criminal penalties may also be imposed. Included in this definition is an incident when one person demands a sexual favor from another under the threat of physical harm or adverse consequence. [(SESIR); §1006.07(2)(i), Florida Statute]

❖ **Threats Relating to Discharge of Destructive Device** – threatening to throw, project, place, or discharge any destructive device with intent to do damage to any property of any person – [(SESIR); §1006.13, Florida Statute]

- **Threat/Intimidation/Harassment/Retaliation toward Employees/Volunteers** – any threat by a student through word or act, to do violence to a school employee/volunteer on or off campus, or damage to property of a school employee/volunteer, coupled with an apparent ability to do so, and creating a well-founded fear in the school employee or volunteer that violence is imminent – By statute, criminal penalties may also be imposed. Retaliation is knowingly engaging in conduct that causes bodily injury to a school employee/volunteer or damages the tangible property of a school employee/volunteer, or threatens/attempts to do so, with the intent to get revenge against the school employee/volunteer. [(SESIR); SBP: 5517; §§784.081, 914.23 Florida Statutes]

- **Threats (Written) to Conduct Mass Shootings or Acts of Terrorism** – written threats to conduct mass shootings or acts of terrorism. Prohibiting a person making, posting, or transmitting a threat to conduct a mass shooting or an act of terrorism in a writing or other record in any manner that would allow another person to view the threat. [HB 165]

- **Threatening Use of Dangerous Instruments** – the threat and use of, or the control of any dangerous instrument (as defined in Level III), paraphernalia, or object (other than a firearm or weapon) which could be used to inflict harm on another person or used to intimidate any person and is not being used for the purpose for which it was normally intended. [(SESIR)]

❖ **Weapon, Electric Weapon or Device, Dart-firing gun** – the possession, use, or control of any sword, sword cane, weapon, electric weapon or device, or dart-firing gun, whether- operable, inoperable, loaded or unloaded), razor blade, box cutter is prohibited – Weapon means any dirk, metallic knuckles, slingshot, billy club, tear gas gun, chemical weapon or device, or other deadly weapon except a common pocketknife, plastic knife, or blunt-bladed table knife. Electric Weapon or device means any device which, through the application or use of electrical current, is designed, redesigned, used, or intended to be used for offensive or defensive purposes, the destruction of life, or the infliction of injury. Dart-firing stun gun means any device having one or more darts that are capable of delivering an electrical current. Bringing a weapon, electric weapon or device, or dart-firing gun to school, any school functions or onto any school sponsored transportation is prohibited. The School Board of Liberty County, Florida, will not tolerate weapons of any nature being taken on school property or at any school sponsored activity, whether on or off the school campus, in any manner at any time, and considers this notice as fair warning to all concerned of the serious consequences for violations of this policy. By statute, criminal prosecution may also result. [(SESIR); SBP: 5772; §§790.001 and 790.115, Florida Statutes]

***Note**: It is the expressed policy of the School Board of Liberty County, Florida, that no firearm or weapon of any nature, including a firearm used for recreational activities such as hunting or target practice, shall be brought upon a school campus, other property owned or maintained by the School Board, or property designated for school activities. Violation of this policy* may *result in expulsion from school for the minimum of one calendar year.*

INTERVENTIONS AND OR CONSEQUENCES: LEVEL IV

Any student found to have committed a Level IV infraction on school property, school-sponsored transportation, or during a school-sponsored activity shall receive a ten (10) day suspension. In addition:

- Students found to have committed Level IV infractions identified by this mark (•) may be subject to either alternative placement in a disciplinary program **or** expulsion from school for one full year.

❖ **"Zero Tolerance" –**These infractions implement the School Board of Liberty County, Florida, Policy and Florida Statute's zero tolerance policy on school violence, crime, and the use of weapons as part of a comprehensive approach to reducing school violence and crime. Students found to have committed Level IV infractions identified by this mark (❖) shall be subject to interventions consistent with the School Board of Liberty County, Florida, Policy and Florida Statutes and will result in alternative placement or expulsion for one full year. [SBP: 5500; §1006.13, Florida Statute]

*Note: The School Board may assign the student to a disciplinary program for the purpose of continuing educational services during the period of expulsion. The Superintendent **may** consider the one (1) year expulsion for Level IV infractions on a case-by-case basis and request that the School Board modify the requirement by assigning the student to a disciplinary program or second chance school if the request for modification is in writing and determined to be in the best interest of the student and the school system. [See Section V: Due Process] At the Elementary Level, a Probationary Plan may be implemented in lieu of expulsion.*

Actions of a student made while seeking to correct any Level IV infraction by voluntarily disclosing the infraction as defined above to an administrator may be considered as a mitigating factor in determining the appropriate intervention.

SECTION V: DUE PROCESS

In order to protect student rights, certain procedures are followed with regard to major disciplinary actions. These procedures are developed as suggested or required by law or regulation. The Due Process proceedings will go before the appropriate schools Security Assessment Team for recommendation.

DUE PROCESS FOR OUT OF SCHOOL SUSPENSIONS

When a student is being considered for an out-of-school suspension by the Superintendent, principal, or other administrator: SBP 5611

1. The student will be informed in writing of the potential suspension and the reasons for the proposed action.
2. The student will be provided an opportunity for an informal hearing to challenge the reason for the intended suspension and to explain his/her actions.
3. An attempt will be made to notify parents or guardians by telephone if a suspension is issued.
4. Within one (1) school day of the suspension the Principal will notify the parents, guardians, or custodians of the suspension. The notice will include the reasons for the suspension.
5. If the student leaves school property without permission immediately upon violation (or suspected violation) of a provision of the Student Code of Conduct or prior to an administrator conducting an informal hearing as specified above, and the student fails to return to school on the following school day, the Principal may send the student and his/her parent(s) guardian(s) notice of the suspension, and offer to provide the student and/or his/her parents an informal hearing upon request to discuss the reasons for the suspension and to allow the student to challenge the reasons and to explain his/her actions, any time prior to the end of the suspension period.

DUE PROCESS PROCEDURES FOR STUDENTS SUBJECT TO EXPULSION

A student accused of a Level III or IV offense which, in the opinion of the principal/designee, may require expulsion from school or bus, shall be afforded the due process described below. Additional procedures for students with disabilities are described in the subsection ESE: Suspensions and Expulsions. In emergency situations, these procedures may be modified, as long as reasonable efforts are made to provide substantially similar opportunities. [SBP:5611]

1. The Superintendent will give the student and parent, guardian, or custodian written notice of the intended expulsion, including reasons for the intended expulsion.
2. The student and parent or representative have the opportunity to appear before the Superintendent to challenge the proposed action or to otherwise explain the student's actions. The written notice will state the time and place to appear, which must not be earlier than three (3) school days nor later than five (5) school days after the notice is given, unless the Superintendent grants an extension upon request of the student or parent.
3. The Superintendent will notify the parents, guardians, or custodians of the pending expulsion. The notice will include the reasons for the expulsion and the right of the student, parent, guardian, or custodian to appeal to the Board or its designee; the right to be represented at the appeal; and the right to request the hearing be held in executive session if before the Board.

APPEAL OF EXPULSION TO THE BOARD

A student who is eighteen (18) or older or a student's parent(s) or guardian(s) may appeal the expulsion by the Superintendent to the Board or its designee. They may be represented in all such appeal proceeding and will be granted a hearing before the board or its designee.

A verbatim record will be kept of the hearing which may be held in executive session at the request of the student, parent, or guardian. The procedure to pursue such appeal will be in accordance with regulations approved by the Superintendent. Notice of intent to appeal must be filed within ten (10) school days of the Superintendent s decision to expel to the Board directly or through the Superintendent s office. While a hearing before the Board may occur in executive session, the Board must act in public.

STUDENTS SUBJECT TO SUSPENSION FOR BUS RIDING/TRANSPORTATION PRIVILEGES

Students on a bus or other authorized School Board transportation vehicles are under the authority of and directly responsible to the bus/vehicle driver. The driver has the authority to enforce the established regulations for bus/vehicle conduct. Disorderly conduct or refusal to submit to the authority of the driver will be sufficient reason for refusing transportation service to any student.

A student may be suspended from school bus/vehicle riding privileges for all or part of a school year for any violation of established regulations for bus conduct and/or for conduct occurring on the bus/vehicle in violation of the Student Code of Conduct/Student Discipline Code.

Before a suspension from bus/vehicle riding privileges is imposed, the principal/designee will provide a student with notice of an intended suspension and an opportunity for an informal hearing before the principal. If the parent wishes to appeal the decision they may request a hearing before the Superintendent. The Superintendent's decision is final.

ESE: SUSPENSIONS AND EXPULSIONS

In matters relating to the disciplining of disabled students, the School Board shall abide by Federal and State laws regarding suspension and expulsion. [SBP 5605]. Students with disabilities identified as exceptional education students may be suspended in accordance with School Board of Liberty County, Florida, policy for a total of ten (10) days in a calendar school year. NOTE: Pre-kindergarten students with disabilities are subject to the Code of Student Conduct suspension procedures; however, prior approval from a discipline review committee must be sought. In case of serious breach of conduct involving the health, safety, and welfare of students and School Board of Liberty County, Florida, employees, appropriate alternatives for allowing the student to continue receiving educational programs and services during the suspension may include, but are not limited to: a reduced day program, transfer to a more restrictive placement for a designated period of time, attendance for special class(es) only, modified school day (i.e., student may come to the school campus at the end of the school day for the instructional program), home instruction, special school placement, other options.

Procedures for the **suspension** of exceptional education students shall be as follows:

Step 1: A disciplinary review meeting must be held each time any exceptional education student has been suspended from school or transportation for the second time or for subsequent suspensions. A disciplinary review meeting is also required for a first suspension if the first suspension is for ten (10) days. The disciplinary committee shall include, but not be limited to, the director of exceptional students/designee, the school psychologist (optional unless incident is significantly serious), the guidance counselor, ESE school specialist, the involved ESE teacher, and the principal/administrative designee. Proper invitation/notification of parents/guardian(s) is required.

Step 2: Functional behavioral assessments and implementation of behavior intervention plans must be initiated by the administrator for any student with: a history of suspensions, three (3) suspensions in the previous year, five (5) days out of school suspension within a school semester, or the student is returning from a Juvenile Justice facility or other alternative placements. A functional behavior assessment and a behavior intervention plan must also be developed within ten days after removing a student with a disability for a ten (10) day suspension. If the student already has a behavior intervention plan, the discipline review/IEP team must meet to review the plan and its implementation as necessary to address the behavior.

Step 3: The disciplinary review committee shall review the student's individual education plan (IEP) and shall determine whether the student's behavior bears a relationship to his/her exceptionality. This decision will be taken into consideration when reviewing all evidence and making recommendations. If the committee determines there is a relationship between the student's behavior and the student's exceptionality, the student will be allowed to make up work missed during the suspension, and the absences due to the suspension will be excused.

Step 4: The decision of the disciplinary review committee shall be documented. The student's IEP may be revised to reflect a modification of the current special program or an alternative placement, or an indication that the exceptionality is not a precipitating factor and the student is expected to behave in accordance with the rules established in this Code of Student Conduct.

Procedures for the disciplinary review of an exceptional education student that has been **formally charged with a felony** by prosecuting attorney shall be as follows:

1. In addition to following steps 1, 2, and 3 above, at the disciplinary review meeting, the principal shall be responsible for conducting a review of the felony charge and determining the adverse impact on the student's current placement and program.
2. It is further recommended that a professional from the Juvenile Justice Commission, with knowledge of the student's case, be invited to participate in the disciplinary review meeting.
3. When and if the charges are dealt with in the court setting, the principal shall be responsible for convening a follow-up discipline review meeting to discuss the disposition of the case.

Any recommendation for the expulsion of any exceptional education student with a disability shall be made in accordance with the rules promulgated by the State Board of Education and Federal Regulations outlined in the Individuals with Disabilities Education Act (IDEA). The **expulsion** of an exceptional education student shall not result in a complete cessation of educational services; the district is responsible for providing the student's education during the expulsion in accordance with a revised individual education plan (IEP). The principal/designee is responsible for taking appropriate action consistent with School Board Policy and the Procedural Safeguards for Parents of Students with Disabilities. The following procedures shall be followed for the **expulsion** of exceptional education students: [SBP: 5605]

Step 1: The Principal shall be responsible for convening a disciplinary review committee. The disciplinary committee shall include, but not be limited to, the director of exceptional student/designee, the school psychologist, the guidance counselor, ESE school specialists, the involved ESE teacher, and the principal/administrative designee. Proper parent/guardian notification/invitation procedures must be followed.

Step 2: If a functional behavior assessment or behavior intervention plan has not been completed for the student, the administrator/IEP team must complete a functional behavior assessment and develop and implement a behavior intervention plan. If the student already has a behavior intervention plan, the discipline review/IEP team must meet to review the plan and its implementation as necessary to address the behavior.

Step 3: The disciplinary review committee shall review the student's IEP and shall determine whether the student's behavior bears a relationship to the student's exceptionality. This decision will be taken into consideration when reviewing all evidence and making recommendations. A disciplinary review committee that determines the student's behavior is in relation to the exceptionality may modify the student's IEP in accordance with current needsand expulsion will not be applied. (Cessation of educational services is not an option for a student with a disability.)Procedures in State Board of Education Rules shall apply when a student's conduct does not bear a relationship tothe exceptionality.

Step 4: The decision of the disciplinary review committee shall be documented. The student's IEP may be revised to reflect a modification of the current special program or an alternative placement, or an indication that the exceptionality is not a precipitating factor and the student is expected to behave in accordance with the rules established in this Code of Student Conduct.

Step 5: Any change from the student's school placement to an alternative education setting must be reviewed within 45 days. The principal/designee of student's home school must attend a discipline meeting/IEP to review the interim alternative education placement prior to extending the alternative setting or returning the student to their home school.

Step 6: The principal/designee is responsible for taking appropriate action consistent with School Board Policy and the Procedural Safeguards for Parents of Students with Disabilities.

SCHOOL COUNSELING PROGRAMS

All School Board of Liberty County, Florida, schools have school counselors and clinical social workers that provide a variety of services to students or make referrals as needed to outside agencies. These services are presented to students in classrooms, small groups, and in individual counseling sessions. These programs may include:

- Social Development and Life Skills
- Education Goal-Setting and Planning
- Emotional Development Needs
- Conflict Resolution Skills
- Career Education and School to Work Activities
- Student Assistance
- Study Skills
- Crisis Intervention
- Transition Activities
- Anger Management

Schools will ensure that students who are referred to a school-based or community-based mental health service provider for mental health screening for the identification of mental health concerns and ensure that the assessment ofstudents at risk of mental health disorders occurs within 15 days of referral. School-based mental health services must be initiated within 15 days after identification and assessment, and support by community-based mental health service providers for students who are referred for mental health services must be initiated within 30 days after the school or district makes a referral.

Summary of Infractions and Consequences

Level I	Level II	Level III	Level IV *
Infractions			
Attendance Rules Violation	Abusive, Profane, Obscene Language/Materials	Breaking & Entering/Burglary	Alcohol
Bus Misconduct		Bullying	Arson*
Cheating	Careless or Malicious Action	Dangerous Instruments	Assault (Threat) or Battery on School Official*
Defacing/Lost Materials	Cell Phones/Electronic Communications Devices	Dating and Violence Abuse	
Disrespect (Minor)		Disruption on Campus (Major)	Battery
Dress Code Violation	Combustibles (Minor)	Drugs/Over the Counter	Biological/Chemical Attack or Threat*
Energy Products	Contraband Materials	Extortion	
Inappropriate Conduct/Behavior	Defiance of Authority, etc.	False Fire Alarm/911 Calls	Bomb Threats/Explosives*
	Disobedience	Felony Off Campus	Boycotts, Riots, Sit-ins, Walkouts, School Disruption
Plagiarism	Disrespect	Fighting	
Prohibited Sales	Forgery	Fireworks	Drugs
Tardiness	Medication Policy Violation	Four Suspensions	False Accusations
Theft (Minimal)	Missed Detention	Gang Related Activity	False Reports*
Vehicle Violation	Physical Altercation/Aggressive Acts	Harassment	Felony Off Campus
	Technology Violation	Motor Vehicle Theft	Firearms*
	Theft (Minor) Unauthorized Assembly, Publications, Petition, Electronic Messages	Other Major	Hazing
		Physical Attach	Homicide*
		Retaliation	Kidnapping/Abduction*
		Sexual Offenses	Robbery*
		Technology Violations	Sexual Battery*
		Theft/Larceny	Sexual Harassment Threats Relating to Discharge of Destructive Device*
		Threat/Intimidation, etc.	Sexual Harassment Threats Relating to Discharge of Destructive Device* Threat/Intimidation, ... Employee/Volunteer
		Tobacco/Vaping/Nicotine	
		Trespassing	
		Vandalism	Threat/Intimidation, ... Employee/Volunteer Threatening Use of Dangerous Instrument
			Threatening Use of Dangerous Instrument
			Weapons*

Consequences			
Conference with Student	Behavioral Contract	Administrative Placement (Due to Felony Off Campus)	Alternative Placement in Disciplinary Program Expulsion at Least One Full Year
Confiscation of Unauthorized Materials, etc.	Bus Suspension or Bus Expulsion		
	Conference with Student	Alternative Disciplinary Placement	*Interventions Consistent with Florida Statute
Corporal Punishment	Confiscation of Unauthorized Materials, etc.		*Interventions Consistent with Florida Statute
Detention		Behavioral Contract	
Grade Reduction (Cheating or Plagiarism only)	Corporal Punishment	Bus Expulsion	
	Detention	Bus Suspension	
Loss of Privileges	In-School Suspension	Conference with Student	
Other Appropriate Intervention	Law Enforcement Intervention	ESE – Change in Placement	
Parent Contact	Loss of Privileges	Expulsion from School	
	Mediation/Restoration	Law Enforcement Intervention	
Parent Mandatory Conference	Other Appropriate Intervention	Mediation/Restoration	
Problem Solving Team	Parent Contact	Other Appropriate Intervention	
Restitution	Parent Mandatory Conference	Parent Mandatory Conference	
School Plus	Child Study Team	Prevention or Treatment Program	
Suspension	Restitution	Child Study Team	
Threat Assessment	School Plus	Restitution	
Warning/Verbal Reprimand	Suspension (Out of School)	Suspension (Out of School)	
Work Assignment/Work Detail	Threat Assessment	Suspension Extended, Pending Hearing	
Zone Waiver Revocation	Work Assignment/Work Detail		
	Zone Waiver Revocation	Threat Assessment	
		Zone Waiver Revocation	
***Zero Tolerance infractions.** **School Administrators use a progressive discipline guide when assigning consequences for infractions outlined in this document. Refer to the Student Handbook.**			

5517.01 - BULLYING AND HARASSMENT

The School Board is committed to providing an educational setting that is safe, secure, and free from bullying and harassment for all students and employees.

The Board will not tolerate unlawful bullying and harassment of any type. Conduct that constitutes bullying and harassment, as defined herein, is prohibited:

A. during any education program or activity conducted by the District;
B. during any school-related or school-sponsored program or activity or on a school bus of the District;
C. through the use of data or computer software that is accessed through a computer, computer system, or computer network within the scope of the District, meaning regardless of ownership, any computer, computer system, or computer network that is physically located on school property or at a school-related or school-sponsored program or activity; or
D. through the use of data or computer software that is accessed at a nonschool-related location, activity, function, or program or through the use of technology or an electronic device that is not owned, leased, or used by the District or school, if the bullying substantially interferes with or limits the victim's ability to participate in or benefit from the services, activities, or opportunities offered by the District or school or substantially disrupts the education process or orderly operation of a school. This paragraph does not require a school to staff or monitor any nonschool-related activity, function, or program.

This policy has been developed in consultation with District students, parents, teachers, administrators, school staff, school volunteers, community representatives, and local law enforcement agencies as prescribed in F.S. 1006.147 and in conformity with the Florida Department of Education (FLDOE) revised Model Policy (April 2016).

The Superintendent shall develop a comprehensive plan intended to prevent bullying and harassment and to cultivate the school climate so as to appropriately identify, report, investigate, and respond to situations of bullying and harassment as they may occur on school grounds, at school-sponsored events, and through school computer networks. Implementation

of the plan will be ongoing throughout the school year and will be integrated with the school curriculum, District disciplinary policies, and violence prevention efforts.

Definitions

"Bullying" includes "cyberbullying" and means systematically and chronically inflicting physical hurt or psychological distress on one (1) or more students or employees. It is defined as any unwanted and repeated written, verbal, or physical behavior, including any threatening, insulting, or dehumanizing gesture, by an adult or student, that is severe or pervasive enough to create an intimidating, hostile, or offensive educational environment; cause discomfort or humiliation; or unreasonably interfere with the individual's school performance or participation; and may involve:

A. teasing;
B. threats;
C. intimidation;
D. stalking;
E. cyberstalking;
F. physical violence;
G. theft;
H. sexual, religious, or racial harassment;
I. public or private humiliation; or
J. destruction of property; and
K. social exclusion.

"Cyberbullying" means bullying through the use of technology or any electronic communication, which includes, but is not limited to, any transfer of signs, signals, writing, images, sounds, data, or intelligence of any nature transmitted in whole or in part by a wire, radio, electromagnetic system, photo-electronic system, or photo-optical system, including, but not limited to, electronic mail, Internet communications, instant messages, or facsimile communications. Cyberbullying includes the creation of a webpage or weblog in which the creator assumes the identity of another person, or the knowing impersonation of another person as the author of posted content or messages, if the creation or impersonation creates any of the conditions enumerated in the definition of bullying. Cyberbullying also includes the distribution by electronic means of a communication to more than one (1) person or the posting of material on an electronic medium that may be accessed by one (1) or more persons, if the distribution or posting creates any of the conditions enumerated in the definition of bullying.

"Cyberstalking" means to engage in a course of conduct to communicate, or to cause to be communicated, words, images, or language by or through the use of electronic mail or electronic communication, directed at a specific person, causing substantial emotional distress to that person and serving no legitimate purpose.

"Harassment" means any threatening, insulting, or dehumanizing gesture, use of data or computer software, or written, verbal or physical conduct directed against a student or school employee that:

A. places a student or school employee in reasonable fear of harm to his/her person or damage to his/her property;
B. has the effect of substantially interfering with a student's educational performance, opportunities, or benefits; or
C. has the effect of substantially disrupting the orderly operation of a school.

"Bullying" and **"harassment"** also encompass:

A. Retaliation against a student or school employee by another student or school employee for asserting or alleging an act of bullying of harassment. Reporting an act of bullying or harassment that is not made in good faith is considered retaliation.
B. Perpetuation of conduct listed in the definition of bullying and/or harassment by an individual or group with intent to demean, dehumanize, embarrass, or cause emotional or physical harm to a student or school employee by:
    1. incitement or coercion;
    2. accessing or knowingly and willingly causing or providing access to data or computer software through a computer, computer system, or computer network within the scope of the District school system; or
    3. acting in a manner that has an effect substantially similar to the effect of bullying or harassment.

"Harassment" also means electronically transmitted acts (i.e., internet, e-mail, cellular telephone, personal digital assistance (PDA), or wireless hand-held device) that a student(s) or a group of students exhibits toward another particular student(s) and the behavior both causes mental and physical harm to the other student and is sufficiently severe, persistent, or pervasive that it creates an intimidating, threatening, or abusive educational environment for the other student(s).

"Within the scope of the District" means regardless of ownership, any computer, computer system, or computer network that is physically located on school property or at a school-related or school-sponsored program or activity.

Expected Behavior
The District expects students to conduct themselves in keeping with their levels of development, maturity, and demonstrated capabilities with a proper regard for the rights and welfare of other students and school staff, the educational purpose underlying all school activities, and the care of school facilities and equipment.

Such behavior is essential in maintaining an environment that provides each student the opportunity to obtain a high-quality education in a uniform, safe, secure, efficient, and high-quality system of education.

The standards for student behavior shall be set cooperatively through interaction among students, parents/guardians, staff and community member, producing an atmosphere that encourages students to grow in self-discipline. The development of such an atmosphere requires respect for self and others, as well as for District and community property on the part of students, staff, and community members. School administrators, faculty, staff, and volunteers serve as role models for students and are expected to demonstrate appropriate behavior, treating others with civility and respect, and refusing to tolerate harassment or bullying.

Consequences
Consequences and appropriate remedial action for students who commit acts of bullying or harassment or found to have wrongfully and intentionally accused another as a means of bullying or harassment may range from positive behavioral interventions up to and including suspension or expulsion, as outlined in the Student Code of Conduct.

Consequences and appropriate remedial action for a school employee found to have committed an act of bullying or harassment or found to have wrongfully and intentionally accused another as a means of bullying or harassment shall include discipline in accordance with District policies, administrative procedures, and the collective bargaining agreement. Egregious acts of harassment by certified educators may result in a sanction against an educator's State-issued certificate. (See the Principles of Professional Conduct of the Education Profession in Florida - F.A.C. 6B-1006)

Consequences and appropriate remedial action for a visitor or volunteer found to have committed an act of bullying or harassment or found to have wrongfully and intentionally accused another as a means of bullying or harassment shall be determined by the school administrator after consideration of the nature and circumstances of the act, including reports to appropriate law enforcement officials.

Procedure for Reporting
The Board designates the principal as the person responsible for receiving all complaints of bullying. Any student or student's parent/guardian who believes s/he has been or is the victim of bullying or harassment should immediately report the situation to the school principal. Complaints against the principal should be filed with the Superintendent. Complaints against the Superintendent should be filed with the Board Chair.

All school employees are required to report alleged violations of this policy and alleged acts of bullying and harassment to the principal or as described above. The alleged violations and acts must be reported by school employees to the principal within twenty-four (24) hours.

All other members of the school community, including students, parents, volunteers, and visitors, are encouraged to report any act that may be a violation of this policy to the principal or as described above.

Written and oral reports shall be considered official reports. Reports may be made anonymously, but formal disciplinary action may not be based solely on the basis of an anonymous report.

The principal shall establish and prominently publicize to students, staff, volunteers, and parents the procedure for reporting bullying and how such a report will be acted upon. A victim of bullying and/or harassment, anyone who witnessed the act, and anyone who has credible information that an act of bullying and/or harassment has taken place may file a report.

Procedure for Investigation
The investigation of a reported act of bullying or harassment is deemed to be a school-related activity and begins with a report of such an act. All complaints about bullying and/or harassment that may violate this policy shall be promptly investigated by an individual, designated by the principal, who is trained in investigative procedures. Documented interviews of the victim, alleged perpetrator, and witnesses shall be conducted privately and shall be confidential. The investigator may not be the accused perpetrator or victim. At no time shall the accused perpetrator and victim be interviewed together. The investigator shall collect and evaluate the facts including, but not limited to, the following:

A. a description of the incident, the nature of the behavior, and the context in which the incident occurred;
B. how often the conduct occurred;
C. whether there were past incidents or past continuing patterns of behavior;
D. the relationship between the parties involved;
E. the characteristics of the parties involved;
F. the identity of the alleged perpetrator, including whether the individual was in a position of power over the individual allegedly subjected to bullying or harassment;
G. the number of alleged bullies/harassers;
H. the age of the alleged bully/harasser;
I. where the bullying and/or harassment occurred;
J. whether there have been other incidents in the school involving the same or other students;
K. whether the conduct adversely affected the student's education or educational environment;
L. the date, time, and method in which the parent(s) of all parties involved were contacted.

In accordance with State law, District staff may monitor as part of any bullying or harassment investigation any non-school related activity, function, or program.

If, during an investigation of reported acts of bullying and/or harassment, the principal or his/her designee believes that the reported misconduct may have created a hostile learning environment and may have constituted unlawful discriminatory harassment based on sex, race, color, national origin, religion, or disability, the principal or his/her designee will report the act of bullying and/or harassment to one (1) of the Compliance Officers so that it may be investigated in accordance with the procedures set forth in Policy 5517 - Anti- Harassment.

Sexual Harassment covered by Policy 2266 - Nondiscrimination on the Basis of Sex in Education Programs or Activities is not included in this policy. Allegations of such conduct shall be addressed solely by Policy 2266.

Upon the completion of the investigation to determine whether or not a particular action or incident constitutes a violation of the policy, the designated individual who has conducted the investigation shall make a determination based on all the facts and surrounding circumstances and shall include:

A. a recommendation of remedial steps necessary to stop the bullying and/or harassing behavior; and
B. a written report to the principal.

A maximum of ten (10) days should be the limit for the completion of the investigative procedural steps and submission of the incident report. While ten (10) days is the expectation for completion of the investigative procedural steps, more time may be needed based on the nature of the investigation and the circumstances affecting that investigation. The investigator shall document in his/her report the reasons for needing additional time beyond ten (10) days. The highest level of confidentiality possible shall be provided regarding the submission of a complaint or a report of bullying and/or harassment and for the investigative procedures that are employed.

The physical location or time of access of a computer-related incident cannot be raised as a defense in any disciplinary action initiated pursuant to this policy.

Scope
The investigator will provide a report on the results of the investigation with recommendations for the principal to make a determination if an act of bullying or harassment falls within the scope of District authority. Computers without web-filtering software or computers with web-filtering software that is disabled shall be used when complaints of cyberbullying are investigated. If the action is within the scope of the District, District procedures for investigating bullying and/or harassment shall be followed. If the action is outside the scope of the District, and believed to be a criminal act, the action shall be referred to the appropriate law enforcement agency. If the action is outside the scope of the District and believed not a criminal act, the principal shall inform parents/guardians of all minor parties.

Parent Notification
The principal shall report the occurrence of an incident of bullying as defined by District policy to the parent/guardian of all students known to be involved in the incident on the same day an investigation of the incident has been initiated. Notification shall be by telephone, e-mail personal conference, or by first-class mail and shall be consistent with the student privacy rights under applicable provisions of the Family Educational Rights and Privacy Act of 1974 (FERPA). The notice shall advise the individuals involved of their respective due process rights including the right to appeal any resulting determination or action to the State Board of Education.

If the bullying incident results in the perpetrator being charged with a crime, the principal shall inform by first class mail or by telephone the parent/guardian of the identified victim(s) involved in the bullying incident about the Unsafe Schools Choice Option (the Elementary and Secondary Education Act, as amended) that states, in pertinent part, as follows:

> "….a student attending a persistently dangerous public elementary school or secondary school, as determined by the State in consultation with a representative sample of local educational agencies, or who becomes a victim of a violent criminal offense, as determined by State law, while in or on the grounds of a public elementary school or secondary school that the student attends, be allowed to attend a safe public elementary school or secondary school within the local educational agency, including a public charter school."

Upon the completion of the investigation and if criminal charges are to be pursued against the perpetrator, the appropriate law enforcement agencies shall be notified by telephone and/or in writing.

Counseling Referral
The District shall provide a referral procedure for intervening when bullying or harassment is suspected or when a bullying incident is reported. The procedure will include:

A. a process by which the teacher or parent may request informal consultation with school staff (e.g., school counselor, school psychologist, school social worker, etc.) to determine the severity of concern and appropriate steps to address the concern;
B. a referral process to provide professional assistance or services that may includes a process by which school personnel or parent/guardian may refer a student to the school intervention team (or equivalent school-based team with a problem-solving focus) for consideration of appropriate services(parent/guardian involvement is required at this policy); or
   If a formal discipline report or formal complaint is made, the principal must refer the student(s) to the school intervention team for determination of counseling support and interventions (parent/guardian is required at this policy).
C. a school-based action to address intervention and assistance as determined appropriate by the intervention team that includes:
   1. counseling and support to address the needs of the victim(s) of bullying or harassment;
   2. interventions to address the behavior of students who bully and harass others (e.g., empathy training, anger management, etc.);
   3. interventions which include assistance and support for parents, as may be deemed necessary or appropriate.

Data Report
The District will utilize Florida's School Environmental Safety Incident Reporting (SESIR) Statewide Report on School Safety and Discipline Data as prescribed. If a bullying (including cyberbullying) and/or harassment incident occurs it will be reported in SESIR, coded appropriately using the relevant incident code and the related element code. Discipline and referral data will be recorded in Student Discipline/Referral Action Report and Automated Student Information System. In a separate section, the District shall include each reported incident of bullying or harassment that does not meet the criteria of a prohibited act under this policy with recommendations regarding such incidents.

The District will provide bullying incident, discipline, and referral data to the Florida Department of Education (FLDOE) in the format requested, through Surveys 2, 3, and 5 from Education Information and Accountability Services, and at designated dates provided by the Department. Data reporting on bullying, harassment, unsubstantiated bullying, unsubstantiated harassment, sexual harassment, and threat/intimidation incidents as well as any bullying-related incidents that have as a basis sex, race, or disability should include the incident basis. Victims of these offenses should also have the incident basis (sex, race, or disability) noted in their student record.

Training and Instruction
Students, parents, teachers, school administrators, counseling staff, and school volunteers shall be provided training and instruction, at least annually, on the District's policy and administrative procedures regarding bullying and harassment. The instruction shall include evidence-based methods of preventing bullying and harassment, as well as information about how to effectively identify and respond to bullying in schools. Instruction regarding bullying, harassment, and the District's violence prevention and school safety efforts shall be integrated into District curriculum at the appropriate grade levels. The training and instruction shall include recognizing behaviors that lead to bullying and harassment and taking appropriate preventative action based on those observations.

Victim's Parent Reporting
The principal shall report the occurrence of an incident of bullying as defined herein to the parent/guardian of students known to be involved in the incident on the same day an investigation of the incident has been initiated. Notification shall be by telephone and in writing by first-class mail and shall be consistent with the student privacy rights under applicable provisions of the Family Educational Rights and Privacy Act of 1974 (FERPA). According to the level of infraction, the victim's parents will be notified by telephone and/or in writing of actions being taken to protect the child; the frequency of notification will depend on the seriousness of the bullying or harassment incident.

Policy Publication
At the beginning of each school year, the Superintendent shall, in writing, inform school staff, parents/guardians/other persons responsible for the welfare of a student of the District's student safety and violence prevention policy.

The District shall provide notice to students and staff of this policy in the Code of Student Conduct, employee handbooks, and via the District's official website. The Superintendent will also provide such notification to all District contractors.

Each principal shall implement a process for discussing, at least annually, the District policy on bullying and harassment with students in a student assembly or other reasonable format. Reminders of the policy and bullying prevention messages will be displayed, as appropriate, at each school and at District facilities.

Immunity
A school employee, school volunteer, students, parent/guardian, or other persons who promptly reports in good faith an act of bullying or harassment to the appropriate school official and who makes this report in compliance with the procedures set forth in District policy is immune from a cause of action for damages arising out of the reporting itself or any failure to remedy the reported incident.

Submission of a good faith complaint or report of bullying or harassment will not affect the complainant or reporter's future employment, grades, learning or working environment, or work assignments. Such immunity from liability shall not apply to any school employee, school volunteer, student, parent/guardian, or other person determined to have made an intentionally false report about harassment, intimidation, and/or bullying.

Privacy/Confidentiality

The School District will respect the privacy of the complainant, the individual(s) against whom the complaint is filed, and the witnesses as much as possible, consistent with the Board's legal obligations to investigate, to take appropriate action, and to conform with any discovery or disclosure obligations. All records generated under this policy and its related administrative procedures shall be maintained as confidential to the extent permitted by law.

Nothing in this policy shall be construed to abridge the rights of students or school employees that are protected by the First Amendment to the Constitution of the United States.

Provision of HOPE Scholarship

The event that a student is subjected to an incident of battery, harassment, hazing, bullying, kidnapping, physical attack, robbery, sexual offenses, harassment, assault, battery, threat or intimidation, or fighting at school an opportunity to transfer the student to another public school or to request a scholarship for the student to enroll in and attend an eligible private school. Scholarships are contingent upon available funds. If awarded the scholarship will remain in force until the student returns to public school or graduates from high school, whichever occurs first.

Procedure

Upon receipt of a report of an incident, the school principal, or his or her designee, will provide a copy of the report to the parent and investigate the incident to determine if the incident must be reported to the FDOE. Within 24 hours after receipt of the report, the principal or his or her designee shall provide a copy of the report to the parent of the alleged offender and to the superintendent. Upon conclusion of the investigation or within 15 days after the incident was reported, whichever occurs first, the school district must notify the parent of the program and offer the parent an opportunity to enroll his or her student in another public school that has capacity or to request and receive a scholarship to attend an eligible private school. A parent who chooses to enroll his or her student in a public school located outside the district in which the student resides shall be eligible for a scholarship to transport the student.

Appendix A: 2025-2026 District and School Grades

2025-26 District Grades

Note: The grading scale for district grades mirrors the grading scale for combination schools, which is as follows: A=65% of points or greater; B=60% to 64% of points; C=45% to 59% of points; D=35% to 44% of points; and F=34% of points or less.

District Number	District Name	Grade 3 English Language Arts Achievement	English Language Arts Achievement	English Language Arts Learning Gains	English Language Arts Learning Gains of the Lowest 25%	Mathematics Achievement	Mathematics Learning Gains	Mathematics Learning Gains of the Lowest 25%	Science Achievement	Social Studies Achievement	Middle School Acceleration	Graduation Rate 2024-25	College and Career Acceleration 2024-25	Total Points Earned	Total Components	Percent of Total Possible Points	Percent Tested	Grade 2026	Grade 2025	Grade 2024	Informational Baseline	Grade 2023	Grade 2022	Grade 2021	Grade 2019	Grade 2018	Grade 2017	Grade 2016	Informational Baseline	Grade 2015	Grade 2014	Grade 2013	Grade 2012	Grade 2011	Grade 2010
39	LIBERTY	60	62	60	60	60	48	42	68	81	82	86	97	806	12	67	97	A	A	A	A	A		A	A	B	B	B	B	C	B	A	B

2025-26 School Grades

Note: The grading scale for elementary schools is as follows: A=62% of points or greater; B=54% to 61% of points; C=41% to 53% of points; D=32% to 40% of points; and F=31% of points or less. The grading scale for middle schools is as follows: A=64% of points or greater; B=57% to 63% of points; C=44% to 56% of points; D=34% to 43% of points; and F=33% of points or less. The grading scale for high and combination schools is as follows: A=65% of points or greater; B=60% to 64% of points; C=45% to 59% of points; D=35% to 44% of points; and F=34% of points or less.

District Number	District Name	School Number	Actual Provider Number	School Name	Grade 3 English Language Arts Achievement	English Language Arts Achievement	English Language Arts Learning Gains	English Language Arts Learning Gains of the Lowest 25%	Mathematics Achievement	Mathematics Learning Gains	Mathematics Learning Gains of the Lowest 25%	Science Achievement	Social Studies Achievement	Middle School Acceleration	Graduation Rate 2024-25	College and Career Acceleration 2024-25	Total Points Earned	Total Components	Percent of Total Possible Points	Percent Tested	Grade 2026	Grade 2025	Grade 2024	Informational Baseline Grade 2023	Grade 2022	Grade 2021	Grade 2019	Grade 2018	Grade 2017	Grade 2016	Informational Baseline Grade 2015	Grade 2014	Grade 2013	Grade 2012	Grade 2011	Grade 2010	Grade 1999	Were the components collocated rule	Collocated Number	Title I Status	Title I School	Alternative/ESE Center School	School Type	Percent of Economically Disadvantaged Students
39	LIBERTY	0021		LIBERTY COUNTY HIGH SCHOOL		63	61	61	58	53	55	92	79		95	97	714	10	71	98	A	B	B	B	A		A	A	C	C	B	B	B	C	B	B	D	C	C	B	C	D	B	C	B	A	C	N		NO	YES	N	03	60.5
39	LIBERTY	0031		W. R. TOLAR K-8 SCHOOL	69	61	55	52	55	41	37	49	84	85			588	10	59	99	C	A	B	A	B		B	B	C	C	B	C	B	A	C	B	A	C	B	B	A	A	A	B	C	D	N		NO	YES	N	04	89.1
39	LIBERTY	0041		HOSFORD ELEMENTARY JUNIOR HIGH SCHOOL	48	63	67	72	68	59	38	70	80	80			645	10	65	98	A	B	B	B	B		B	C	C	B	B	B	A	A	A	A	B	C	A	B	A	A	A	C	B	D	D	N		NO	YES	N	04	78.1